



Medford City Council
Medford, Massachusetts

The Fifteenth Regular Meeting, September 15, 2026

City Council

Isaac B. "Zac" Bears
Anna Callahan
Emily Lazzaro
Matt Leming
Liz Mullane
George A. Scarpelli
Justin Tseng

This meeting will take place at 7:00 P.M. in the City Council Chamber, 2nd Floor, Medford City Hall, 85 George P. Hassett Drive, Medford, MA and via Zoom.

Zoom Link:

<https://us06web.zoom.us/j/81726353677?pwd=XVYnAA32Mv9kCghLJ5ZlJv9p6RdiaY.1>

Call-in Number: +19292056099,,81726353677#,,, *657753#

Live: Channel 22 (Comcast), Channel 43 (Verizon), [YouTube](#), and medfordtv.org.

To submit written comments, please email ccmembers@medford-ma.gov.

CALL TO ORDER & ROLL CALL

SALUTE TO THE FLAG

ANNOUNCEMENTS, ACCOLADES, REMEMBRANCES, REPORTS, AND RECORDS

26-148 - Offered by Isaac Bears, Council President, Liz Mullane, City Councilor, Justin Tseng, City Councilor

Resolution to Invite Residents to Ward 1 Neighborhood Meeting on September 23rd

26-153 - Offered by Emily Lazzaro, Council Vice President

Resolution to Acknowledge and Celebrate National Recovery Month

26-157 - Offered by George Scarpelli, City Councilor

Resolution in Memory of Lorraine Marie Miles

Records

The Records of the Meeting of August 4, 2026 were passed to Councilor Mullane

Reports of Committees

26-134 - Offered by Isaac Bears, Council President

Committee of the Whole, August 4, 2026, Report

24-354 and 26-024 - Offered by Liz Mullane, City Councilor

Resident Services and Public Engagement Committee, August 5, 2026, Report

Refer to Committee for Further Discussion

26-154 - Offered by Emily Lazzaro, Council Vice President

Resolution to Discuss Safety Improvements at the West Medford Train Station (to be referred to Public Health and Community Safety Committee)

PETITIONS, PRESENTATIONS, AND SIMILAR PAPERS

26-149

Submitted by City Clerk

Petition for Common Victualler's License - Nippon Unlimited dba Ebisuya

26-150

Submitted by City Clerk

Petition for Common Victualler's License - Muzii & Co

26-151

Submitted by City Clerk

Petition for Common Victualler's License - Raso's Food Medford LLC dba Raso's Grille

MOTIONS, ORDERS, AND RESOLUTIONS

19-070 - Offered by Councilor Callahan

Public Tree Ordinance

26-093 - Offered by Matt Leming, City Councilor, Isaac Bears, Council President

Proposed Amendments to the Medford Zoning Ordinance - Boston Avenue
Neighborhood Corridor District (CDB Recommendations for Final Council Approval)

26-142B - Offered by City Council

City Council Response to Paper 26-142 (Law Department Appropriations)

26-155 - Offered by Isaac Bears, Council President

Resolution to Appoint Councilor to Police Chief Hiring Committee

**26-156 - Offered by Matt Leming, City Councilor, Isaac Bears, Council President,
Justin Tseng, City Councilor**

Resolution Calling for the Immediate Release of Medford Resident Vijay D'Souza from
ICE Detention in Atlanta

26-159 - Offered by George Scarpelli, City Councilor

Resolution Clarifying the Status and Application of the Proposed "Building Height"
Definition Change

26-159 - Offered by George Scarpelli, City Councilor

Resolution to Draft Ordinance Concerning Acceptance of M.G.L. Chapter 40U and
Establishment of a Municipal Fine Enforcement and Tax Roll Collection Process

26-160 - Offered by George Scarpelli, City Councilor

Resolution to Discuss Private Ways: Clarifying City Authority, Responsibilities, and
Notice to Residents

26-161 - Offered by Isaac Bears, Council President

Resolution to Approve Council Declaration of Support for Resident or Attorney General
Intervention in Chertok v. City of Medford to Ensure Effective Defense of City
Ordinances

COMMUNICATIONS FROM THE MAYOR

26-142

Submitted by Mayor Breanna Lungo-Koehn

Supplemental Appropriation for the Fiscal Year 2027

26-146

Submitted by Mayor Breanna Lungo-Koehn

Board and Commission Appointments - September 15, 2026

26-147

Submitted by Mayor Breanna Lungo-Koehn

Community Preservation Committee Appropriation Request - TreesMedford Barry
Park-College Ave Plantings

26-152

Submitted by Mayor Breanna Lungo-Koehn

Litigation Settlement - Sentry Ford

PUBLIC PARTICIPATION

To participate outside of Zoom, please e-mail REliseo@medford-ma.gov.

UNFINISHED BUSINESS

26-003

Appointment of a City Messenger for 2026 and 2027

IN CITY COUNCIL

JANUARY 6, 2026

TABLED

26-063

**Resolution to Update the Ordinance Establishing the
Medford Commission for Persons with Disabilities**

IN CITY COUNCIL

JULY 14, 2026

APPROVED FOR FIRST
READING

ADVERTISED

JULY 30, 2026

MEDFORD TRANSCRIPT &
SOMERVILLE JOURNAL

IN CITY COUNCIL

AUGUST 4, 2026

ELIGIBLE FOR THIRD
READING

Reports Due/Deadlines

16-574

University Accountability Report (Next Report Due in
November 2026)

22-026

Quarterly Presentation on City's Financial Health by Chief Financial Officer/Auditor

22-027

Monthly Copy of Warrant Articles from Chief Financial Officer/Auditor

Adjournment



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Isaac Bears, Council President, Liz
Mullane, City Councilor, Justin
Tseng, City Councilor

AGENDA ITEM

26-148 - Resolution to Invite Residents to Ward I Neighborhood Meeting on September 23rd

FULL TEXT AND DESCRIPTION

Be it Resolved by the Medford City Council that we invite the residents of Ward I to attend the Ward I Neighborhood Meeting on September 23rd at 7PM at the Andrews Middle School. This meeting will be hosted by Councilor Mullane and Councilor Tseng, and residents are welcome to attend and discuss improvements they would like to see in their neighborhood.

For more information and for a Zoom link when it is available, please visit the [City of Medford Events Calendar](#).

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Emily Lazzaro, Council Vice
President

AGENDA ITEM

26-153 - Resolution to Acknowledge and Celebrate National Recovery Month

FULL TEXT AND DESCRIPTION

Whereas September is National Recovery Month; and

Whereas harm reduction is under attack by the federal government and programs and services have been eliminated wholesale, which will most certainly result in overdoses and deaths; and

Whereas Medford's Department of Health and Human Services does powerful work every day to support our residents in recovery, now therefore:

Be it hereby resolved that the Medford City Council acknowledge and celebrate National Recovery Month and continue to work publicly to push back against negative stigma regarding those in recovery, and celebrate their achievements and their inherent value.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-157 - Resolution in Memory of Lorraine Marie Miles

FULL TEXT AND DESCRIPTION

Be it RESOLVED, that the Medford City Council extends its deepest condolences to former School Committee member /Kathy Kreatz and the Miles family on the passing of her mother, Lorraine Marie Miles, a devoted Medford resident and educator, on August 21, 2026, and further resolves that a moment of silence be observed in her memory and a copy of this resolution be transmitted to the family.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Emily Lazzaro, Council Vice
President

AGENDA ITEM

26-154 - Resolution to Discuss Safety Improvements at the West Medford Train Station (to be referred to Public Health and Community Safety Committee)

FULL TEXT AND DESCRIPTION

Whereas the West Medford train station is recognized by the Massachusetts Bay Transit Authority (the MBTA) as one of the most dangerous in the state, and;

Whereas the MBTA knew the dangers associated with the West Medford at-grade crossing since at least 2023; and

Whereas the MBTA had planned safety upgrades in the works since at least 2023; and

Whereas the MBTA made ADA accessibility upgrades to the West Medford train station recently, but did not make the safety upgrades that would have significantly increased safety to the at-grade crossing; and

Whereas John Westwater was injured by a train on July 20th and subsequently died from his injuries; and

Whereas it is the duty of government agencies such as the MBTA and local leaders to be proactive in protecting residents, especially vulnerable residents such as seniors, people with disabilities, and children from known safety hazards, now therefore:

Be it hereby resolved that the Medford City Council hold a meeting of the Public Health and Community Safety Committee to discuss the timeline of planned safety upgrades with the MBTA, also inviting our state delegation in order to have all interested and empowered parties in discussion publicly.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



CITY OF MEDFORD

City Clerk's Office
85 George P. Hassett Dr.; Rm 103
Medford, MA 02155
(781) 393-2425

Permit No: VIC26-000032
Issue Date : 08/18/2026
Fee : 75.00

The Commonwealth of Massachusetts

This is to Certify that a Common Victualler License is hereby granted to:

Nippon Unlimited dba Ebisuya

Location: 24 HIGH ST Medford, MA

In said **City of Medford**, and at place only and expires **12/31/2026** unless sooner suspended or revoke for the violations of the law of the Commonwealth respecting the licensing of the common victuallers. This license is issued in conformity with the authority granted to the licensing authorities by M.G.L. Ch. 140 and amendments thereto.

Hours of Operation : Mon: 11:30 AM-08:00 PM; Tues: 11:30 AM-08:00 PM;
Weds: 11:30 AM-08:00 PM; Thurs: 11:30 AM-08:00 PM; Friday: 11:30 AM-08:00
PM; Sat: 09:00 AM-08:00 PM; Sun: 11:30 AM-08:00 PM

By Order of the Medford City Council

LICENSING AUTHORITIES

Laurel Siegel
City Clerk

Provisions set forth by the City of Medford:

1. Notify Medford City Clerk on location, ownership and /or name change.
2. Adhere to Medford sign ordinance S.94-6.2
3. Adhere to Medford Health Dept. Public Sanitation Ordinance.
4. Adhere to Zoning Laws pertaining to Keno.

EXTRACTS FROM GENERAL LAWS, (TER. ED) CHAPTER 140

Section 7. An innholder who, upon request, refuses to receive and make suitable provision for a stranger or traveler shall be punished by a fine of not more than fifty dollars.

Section 9. If, in the opinion of the licensing authorities, a licensee as an innholder or a common victualler ceases to be engaged in the business he is licensed to pursue, or fails to maintain upon his premises the implements and facilities required by this chapter, they shall immediately revoke his license. If a licensee at any time conducts his licensed business in an improper manner, the licensing authorities, after notice to the licensee and reasonable opportunity for a hearing, may upon satisfactory proof thereof suspend or revoke his license or impose a fine; provided that, the fine for the first offense within a 6 month period shall be not less than \$500 and not more than \$1,000; for the second offense within a 6 month period the fine shall be not less than \$1,000 and not more than \$2,000; for the third offense within a 6 month period the fine shall be not less than \$2,000 and not more than \$5,000; for the fourth offense within a 6 month period the fine shall be not less than \$5,000 and not more than \$10,000; and for the fifth offense within a 6 month period the fine shall be not less than \$10,000. An innholder who violates section seven shall forfeit his license. A licensee who is convicted a second time of the violation of any of the provisions of sections six to eighteen, inclusive, shall forfeit his license.

Section 18. Every innholder and common victualler shall at all times have a board or sign affixed to his house, shop, cellar or store, or in a conspicuous place near the same, with his name legibly inscribed thereon in large letters and the business for which he is licensed inscribed thereon, and upon neglect thereof shall forfeit twenty dollars.

Section 20. Whoever assumes to be an innholder or common victualler without being licensed as such under this chapter shall forfeit one hundred dollars.

Section 21. Whoever is convicted a third time of a violation of any provision of the preceding sections, except those contained in sections seven and eight, shall, in addition to the penalties before provided, be punished by imprisonment for not more than three months

License Is non-Transferable



CITY OF MEDFORD

City Clerk's Office
85 George P. Hassett Dr.; Rm 103
Medford, MA 02155
(781) 393-2425

Permit No: VIC26-000040
Issue Date : 08/31/2026
Fee : 75.00

The Commonwealth of Massachusetts

This is to Certify that a Common Victualler License is hereby granted to:

Muzii & Co dba Muzii & Co

Location: 22 RIVERSIDE AV Medford, MA

In said **City of Medford**, and at place only and expires **12/31/2026** unless sooner suspended or revoke for the violations of the law of the Commonwealth respecting the licensing of the common victuallers. This license is issued in conformity with the authority granted to the licensing authorities by M.G.L. Ch. 140 and amendments thereto.

Hours of Operation : Mon: 10:00 AM-10:00 PM; Tues: 10:00 AM-10:00 PM;
Weds: 10:00 AM-10:00 PM; Thurs: 10:00 AM-10:00 PM; Friday: 10:00 AM-10:00
PM; Sat: 10:00 AM-10:00 PM; Sun: 10:00 AM-10:00 PM

By Order of the Medford City Council

LICENSING AUTHORITIES

Laurel Siegel
City Clerk

Provisions set forth by the City of Medford:

1. Notify Medford City Clerk on location, ownership and /or name change.
2. Adhere to Medford sign ordinance S.94-6.2
3. Adhere to Medford Health Dept. Public Sanitation Ordinance.
4. Adhere to Zoning Laws pertaining to Keno.

EXTRACTS FROM GENERAL LAWS, (TER. ED) CHAPTER 140

Section 7. An innholder who, upon request, refuses to receive and make suitable provision for a stranger or traveler shall be punished by a fine of not more than fifty dollars.

Section 9. If, in the opinion of the licensing authorities, a licensee as an innholder or a common victualler ceases to be engaged in the business he is licensed to pursue, or fails to maintain upon his premises the implements and facilities required by this chapter, they shall immediately revoke his license. If a licensee at any time conducts his licensed business in an improper manner, the licensing authorities, after notice to the licensee and reasonable opportunity for a hearing, may upon satisfactory proof thereof suspend or revoke his license or impose a fine; provided that, the fine for the first offense within a 6 month period shall be not less than \$500 and not more than \$1,000; for the second offense within a 6 month period the fine shall be not less than \$1,000 and not more than \$2,000; for the third offense within a 6 month period the fine shall be not less than \$2,000 and not more than \$5,000; for the fourth offense within a 6 month period the fine shall be not less than \$5,000 and not more than \$10,000; and for the fifth offense within a 6 month period the fine shall be not less than \$10,000. An innholder who violates section seven shall forfeit his license. A licensee who is convicted a second time of the violation of any of the provisions of sections six to eighteen, inclusive, shall forfeit his license.

Section 18. Every innholder and common victualler shall at all times have a board or sign affixed to his house, shop, cellar or store, or in a conspicuous place near the same, with his name legibly inscribed thereon in large letters and the business for which he is licensed inscribed thereon, and upon neglect thereof shall forfeit twenty dollars.

Section 20. Whoever assumes to be an innholder or common victualler without being licensed as such under this chapter shall forfeit one hundred dollars.

Section 21. Whoever is convicted a third time of a violation of any provision of the preceding sections, except those contained in sections seven and eight, shall, in addition to the penalties before provided, be punished by imprisonment for not more than three months

License Is non-Transferable



CITY OF MEDFORD

City Clerk's Office
85 George P. Hassett Dr.; Rm 103
Medford, MA 02155
(781) 393-2425

Permit No: VIC26-000041
Issue Date :
Fee : 75.00

The Commonwealth of Massachusetts

This is to Certify that a Common Victualler License is hereby granted to:

Raso's Food Medford LLC dba Raso's Grille

Location: 209 MYSTIC AV Medford, MA

In said **City of Medford**, and at place only and expires unless sooner suspended or revoke for the violations of the law of the Commonwealth respecting the licensing of the common victuallers. This license is issued in conformity with the authority granted to the licensing authorities by M.G.L. Ch. 140 and amendments thereto.

Hours of Operation : Mon: 07:00 AM-01:00 AM; Tues: 07:00 AM-01:00 AM;
Weds: 07:00 AM-01:00 AM; Thurs: 07:00 AM-01:00 AM; Friday: 07:00 AM-01:00
AM; Sat: 07:00 AM-01:00 AM; Sun: 07:00 AM-01:00 AM

By Order of the Medford City Council

LICENSING AUTHORITIES

Laurel Siegel
City Clerk

Provisions set forth by the City of Medford:

1. Notify Medford City Clerk on location, ownership and /or name change.
2. Adhere to Medford sign ordinance S.94-6.2
3. Adhere to Medford Health Dept. Public Sanitation Ordinance.
4. Adhere to Zoning Laws pertaining to Keno.

EXTRACTS FROM GENERAL LAWS, (TER. ED) CHAPTER 140

Section 7. An innholder who, upon request, refuses to receive and make suitable provision for a stranger or traveler shall be punished by a fine of not more than fifty dollars.

Section 9. If, in the opinion of the licensing authorities, a licensee as an innholder or a common victualler ceases to be engaged in the business he is licensed to pursue, or fails to maintain upon his premises the implements and facilities required by this chapter, they shall immediately revoke his license. If a licensee at any time conducts his licensed business in an improper manner, the licensing authorities, after notice to the licensee and reasonable opportunity for a hearing, may upon satisfactory proof thereof suspend or revoke his license or impose a fine; provided that, the fine for the first offense within a 6 month period shall be not less than \$500 and not more than \$1,000; for the second offense within a 6 month period the fine shall be not less than \$1,000 and not more than \$2,000; for the third offense within a 6 month period the fine shall be not less than \$2,000 and not more than \$5,000; for the fourth offense within a 6 month period the fine shall be not less than \$5,000 and not more than \$10,000; and for the fifth offense within a 6 month period the fine shall be not less than \$10,000. An innholder who violates section seven shall forfeit his license. A licensee who is convicted a second time of the violation of any of the provisions of sections six to eighteen, inclusive, shall forfeit his license.

Section 18. Every innholder and common victualler shall at all times have a board or sign affixed to his house, shop, cellar or store, or in a conspicuous place near the same, with his name legibly inscribed thereon in large letters and the business for which he is licensed inscribed thereon, and upon neglect thereof shall forfeit twenty dollars.

Section 20. Whoever assumes to be an innholder or common victualler without being licensed as such under this chapter shall forfeit one hundred dollars.

Section 21. Whoever is convicted a third time of a violation of any provision of the preceding sections, except those contained in sections seven and eight, shall, in addition to the penalties before provided, be punished by imprisonment for not more than three months

License Is non-Transferable



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Anna Callahan, City Councilor

AGENDA ITEM

19-070 - Public Tree Ordinance

FULL TEXT AND DESCRIPTION

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

- I. Public Tree Preservation Ordinance

Public Tree Preservation, Protection, and Replacement Ordinance

Chapter 86, Article III, of the City of Medford Ordinances is hereby amended as follows:

Section 86-91 hereby deleted in its entirety and the following new sections are hereby adopted:

Sec. 86-91 - Intent and Purpose

This ordinance is enacted for the purpose of preserving and protecting both Public Shade Trees and trees otherwise located on public property as set forth herein.

The State Legislature has granted municipalities the right and responsibility to protect the health, safety, and welfare of their residents through the creation and enactment of regulations. Zoning powers further allow municipalities to “regulate the use of land, buildings and structures to the full extent of independent constitutional powers of cities and towns to protect the health, safety and general welfare of their present and future inhabitants,” according to MGL Chapter 40A.

A mature tree canopy protects the community in critically important ways. It reduces: energy consumption, ambient summertime temperatures, air pollution, flooding, and soil erosion. It provides privacy, absorbs noise, and boosts mental health. It supports wildlife and increases resilience to climate change. It also maintains the natural beauty of Medford for all to enjoy today and for future generations. Protecting the City’s tree canopy is thus an essential community function and public purpose. This protection requires the City to manage its urban forest.

To achieve this purpose, this ordinance outlines the procedures that the Tree Warden will use to regulate the removal and replacement of public trees. This ordinance also establishes a Tree Fund to supplement the City budget for tree maintenance, tree planting, stump removal, and site preparation for tree planting on public land.

Sec. 86-92 Urban Forest Management Plan

The City shall maintain and periodically update the Urban Forest Management Plan to guide the preservation, maintenance, removal, replacement, and planting of Public Trees.

The Tree Warden and relevant City departments shall consider and substantially follow the goals, priorities, and best practices identified in the Plan when making decisions regarding public tree management, tree replacement, species selection, stump removal, and planting priorities.

The Plan shall promote the long-term health, diversity, resilience, and equitable distribution of the City’s urban forest.

Sec. 86-93 - Definitions

Caliper: Diameter of a tree trunk (in inches) measured 12 inches above the ground for trees up to and including eight inches in diameter. For larger trees, the diameter is measured 24 inches above the ground.

Certified Arborist: A professional arborist possessing current certification issued by the International Society of Arboriculture (I.S.A.) and/or the Massachusetts Arborist Association (M.A.A.).

Urban Forest Management Plan: Plan to identify the City's goals and priorities for managing its public trees; to describe the status of the City's urban forest resources and its management program; and to document the methods, resources, and personnel that will be used to achieve these goals over the next five years.

Construction: Any activity that affects trees, tree root zones, or is within the drip line and that requires a building permit or trench permit, including driveways, retaining walls, solar installation where trees are removed, site work on foundations, underground utilities, excavation, grading, and paving construction or alteration of a structure or structures where the drip zone of a tree would be affected.

Demolition: Any act of pulling down, destroying, removing or razing a building; or altering or disturbing the landscape, removing trees, soils or supporting vegetation; or commencing such work with the intent of completion.

DBH ("Diameter at Breast Height"): The tree diameter in inches measured at 4.5 feet above the ground. For multi-stemmed trees, the size is determined by measuring all the trunks, and then adding the total diameter of the largest trunk to one-half the diameter of each additional trunk.

Drip Line: The area directly under the tree at the outer circumference of the tree branches, where most of the rainwater shed from the tree canopy drips to the ground. The Critical Root Zone (CRZ) lies within the drip line.

Hazardous Trees: Any tree that has been deemed by the Tree Warden to be dead, injured, and dangerous, where the hazard cannot be eliminated by pruning. Any tree that is likely to cause disease or infestation in other trees; is in imminent danger of falling; is dangerously close to existing structures; is causing disruption of public utility service; is causing drainage or passage problems upon rights-of-way that cannot be remediated by other means; or that poses an unavoidable threat to pedestrian or vehicular safety that cannot be eliminated by pruning.

Landmark Tree: Any healthy tree may be designated as a Landmark Tree if it meets one of more of the following criteria: a) a tree that is documented to be 50 years old or older; b) is 24

inches in diameter or more at breast height; c) represents a rare species; d) is associated with a historical event or person, unusual feature, or scenic enhancement. All Landmark Trees are Protected Trees except those listed as invasive species on the Massachusetts Invasive Plants list.

Landscape Design Plan: A written description and scale drawing of the future site that includes the locations of plantings, structures, hardscape, greenscape, and topography, and indicates the future canopy.

Medford Tree Committee: The Committee established to promote the planting and protection of trees in Medford.

Person: Any Medford resident, property owner, firm, partnership, association, corporation, company or organization of any kind including public or private utility and municipal department.

Protected Tree: All public trees as defined in this section except those listed as invasive species on the Massachusetts Invasive Plants list.

Public Tree: All trees within a public way, public park or its boundaries, or leased land being used as a public facility are Public Trees. When the tree's ownership or rights are material to the issue, and the boundaries of the public way cannot be ascertained by records or monuments, the Tree Warden shall determine if the tree in question is a public tree. Any tree within the public right-of-way except for state highways that, as determined by the Tree Warden, has any portion of the stem between six inches and 4 1/2 feet above grade actively growing into the public right-of-way. (See G.L.c.87 s.1)

Tree Fund: An account established pursuant to this ordinance for the deposit of payments for mitigating tree removal in lieu of tree replanting. This fund may only be expended as a means of promoting a healthy tree canopy and will be applied to the cost of site preparation, tree replanting, and new tree maintenance.

Tree Removal: Removal or destruction by saws, or other mechanical means of a living tree, or any act a) that has caused a significant or protected tree to die within the previous 12 months or b) is likely to cause significant decline or death within a three-year period.

Tree Removal Permit: Permit issued by the Tree Warden for removal of public trees based on appropriate hearing process.

Tree Save Zone: The area surrounding all Protected Trees to the drip line, sufficiently large to ensure the health of the Protected Tree(s), including their trunks, crowns, and root systems.

Tree Warden: As defined in G.L. c.87 s.2 and Medford Rev. Ords. 1974, ch. 26, § 2, the Tree Warden is the City employee responsible for the management of the City's public trees.

Urban Forest: All of the Protected Trees in the City and the lands that support those trees.

Sec. 86-94 **Applicability.**

These provisions shall apply to the activities related to trees on public land.

Sec. 86-95 Tree Permit

1. A Public Tree may not be trimmed, pruned, or removed by any person other than the Tree Warden or designee until and unless the Tree Warden issues a written permit after a public hearing consistent with G.L. 87, §§3-5. If a public tree has fallen on a house resulting in damage to windows, puncturing roofs or similar significant damage requiring immediate action, the homeowner may proceed to have the tree taken down after notifying the Tree Warden, and no permit is necessary.

2.

A.

B.

Sec. 86-96 Tree Planting

3. The Urban Forest Management Plan will indicate priorities for the planting of trees throughout the City to promote an equitable and diverse urban tree canopy that provides adequate shade for all its neighborhoods.

C.

4.

Sec. 86-97 Recordkeeping and Public notification

The City will maintain an updated inventory of all public trees, tree removals and stumps. The Tree Warden shall keep a publicly available electronic record of removal requests, which shall include the species and size of tree(s) to be removed, the reason for the removal, the date, the contractor(s) involved, and the name and address of the person who requests removal. The City will maintain, and make publicly available in electronic form, an inventory of trees that includes tree and stump removals and new planting. If a tree is removed from the sidewalk strip, the Tree Committee and residents within a block of the site must be informed of the intent to remove the tree and the plan for stump removal and replacement.

Sec. 86-98. Protection of Landmark Trees

The City shall make extra efforts to preserve Landmark trees, including treating diseased trees where feasible, enhancing pruning schedules and regular monitoring of the tree. A Landmark Tree shall not be cut down or removed without a permit.

Sec. 86-99 - Enforcement and Penalties

A. **Citizen removal of a public tree:** Any person or entity damaging or removing a Public Tree without authority will be fined and the fines will be deposited in the Tree Fund.

Enforcement shall be by the Tree Warden or the Tree Warden's designee, or the police. Citizens may report damage or removal of public trees to the Tree Warden.

- B. **Penalties:** Any person who violates any section of this ordinance or violates any stipulation of a permit issued pursuant to this ordinance, shall be fined and the fine shall consist of the cost of compensating the City for the cost of replacing the canopy that was lost. This compensation shall be calculated by measuring the canopy cover using recent aerial photography such as Google Maps coverage or aerial photography, determining the number of young trees that would have the equivalent canopy coverage. The fine shall be the sum of the cost of preparing the site, planting the aforementioned number of young trees at the current contract rate, and salaries and costs for staff time for selecting, watering and monitoring those trees.



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Matt Leming, City Councilor, Isaac
Bears, Council President

AGENDA ITEM

26-093 - Proposed Amendments to the Medford Zoning Ordinance - Boston Avenue Neighborhood Corridor District (CDB Recommendations for Final Council Approval)

FULL TEXT AND DESCRIPTION

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

1. PDS_CDB_BANCD_memo_09092026
2. 20260908Boston Ave v7- post-meeting
3. 20260819_North Boston Ave 5k_Final Zoning
4. 20260908_South Boston Ave 5k_Final Zoning



City of Medford

Office of Planning, Development and Sustainability

City Hall - Room 308
85 George P. Hassett Drive
Medford, Massachusetts 02155

(781)393-2480
Fax: (781)393-2342
ocd@medford-ma.gov

Contact:

To: City Council President Zac Bears and Honorable Members of the City Council
From: Alicia Hunt, Director, Office of Planning, Development, and Sustainability
Date: September 10, 2026
RE: Community Development Board Recommendation: Boston Avenue Neighborhood Corridor District (BANCD)

On September 2, 2026, the Community Development Board ("CDB") held a duly noticed public meeting to deliberate and vote on a recommendation on the proposed zoning amendment to create a new Boston Area Neighborhood Corridor District ("BANCD"). Board members present at the meeting were Chair Doug Carr, Member John Anderson, Member Sean Beagan, Member Page Buldini, Member Dina Colagerro, and Member Ari Fishman.

Emily Innes (Innes Land Strategies Group) presented the latest version of the draft amendment which incorporated both Innes' and PDS staff's understanding of the feedback from the June 24, 2026 joint public hearing which included updating the dimensional table with different heights and upper story stepback depths to match what was presented in the massing models and shadow studies. It should be noted that the actual numerical dimensions of the modeled building envelopes were not readily available at the June 24th public hearing, however the dimensions were subsequently confirmed in ArcUrban (the modeling software), which limited the maximum height along North Street to five (5) stories with allowances to step up to seven (7) stories 60 feet from North Street ("a 60 foot stepback at North Street") with appropriate incentives. A front building setback of 20 feet was modeled for Winchester Street.

The Board was surprised that what had been shown at the June 24th meeting was a 60-foot stepback. There was disagreement among the Board members as to whether that large of a stepback had been included in the request to "set the dimensionals to what we saw in the models", as that discussion occurred several hours before the actual vote. Upon reviewing the numbers and looking again at the shadow studies for the 60-foot stepback, the Board desired to see what smaller stepbacks would look like, but those models were not available during the meeting.

In order to move this recommendation forward on the timeline committed to, the Board voted to move this forward, respectfully requesting that the City Council review shadow studies for this location reflecting a 60-foot stepback, a 30-foot stepback and a 10-foot stepback at North Street, before deciding what that specific dimensional should be.

The Board voted that all other dimensionals and language in the attached document reflect the votes and decisions made at the June 24th meeting.

Board Member Buldini motioned to send City Council a summary of the discussion as two interpretations of the BA-3 setbacks, and state the disagreement amongst the Board about what was discussed at the June 24th meeting, and what the height setbacks should be for BA-3. Motion seconded by Board Member Gofman Fishman. The Board voted (4-2 with Member Beagan and Member Caloggero opposed) by roll call vote to send the summary to City Council.

Board Member Caloggero motioned to recommend the BANCD ordinance to City Council with the edits made during the September 2nd meeting, with the carve-out of BA-3 still requiring discussion. Motion seconded by Board Member Anderson. The Board voted unanimously (6-0) by roll call vote to recommend the edited BANCD ordinance to City Council.

The recommended amendment language and maps are attached to this memorandum. The additional massing models and shadow studies will be presented at the September 15th City Council meeting.

Attached please find a clean version of the zoning appropriate for adoption as well as a version with **Bold and Underline** reflecting changes from the June 24th zoning and **red** reflecting changes from the September 2nd document.

cc: Breanna Lungo-Koehn, Mayor
Danielle Evans, Senior Planner, Office of Planning, Development, and Sustainability
Laurel Siegel, City Clerk

MEMORANDUM

To	Members of the Community Development Board Alicia Hunt, Director of Planning, Development & Sustainability Danielle Evans, Senior Planner
From	Emily Keys Innes, AICP, LEED AP ND, President
Date	April 22, 2026 – revised May 1, May 5, May 7, June 16, August 14, 18, + 19, September 8, 2026
Project	25151 – Medford – Zoning Phase 2
Subject	Boston Avenue Neighborhood Corridor District, v.7
Cc:	Paula Ramos Martinez, Chief Resilience Officer

This memorandum contains draft text for the following proposed zoning changes:

Amend Section 94-2.1. Division into districts	page 2
Amend Section 94-2.3. Overlay and Special Districts	page 2
Amend Section 94-6.5.4. Zoning Districts	page 2
Amend Section 94-3.2 Table of Use Regulations (Table A) Dimensional Standards	page 3
Amend Section 94-12.0 Definitions	page 13
Add Section 94-9.X Boston Avenue Neighborhood Corridor District	page 14

This version has been updated in response to comments from the Joint Hearing of the City Council and the Community Development Board on June 24, 2026 and the preceding Community Development Board meeting. New text is bolded and underlined. The Community Development Board met on September 2, 2026. Additional changes are in red and also bolded and underlined.

The three parcels belonging to St. Clement’s Parish that are labeled as BA-2a will be reclassified as BA-2b in both the static and online maps before the City Council meeting on September 15.

The online maps are here: <https://arcg.is/1nC0902>.

Add the following row to the table of zoning districts, as shown below:

Full Name	Classification	Abbreviation
Boston Avenue Neighborhood Corridor District	Residential, Office, and Commercial	BANCD

Amend Section 94-2.3. Overlay and Special Districts.

Add the following row to the list of overlay and special districts:

Boston Avenue Neighborhood Corridor District BANCD

Amend Section 94-6.5.4. Zoning Districts.

Add the following row to the table of required green scores by zoning district:

Zoning District	Green Score (Min/Ideal)*
Boston Avenue Neighborhood Corridor District: BA-1	25/30
Boston Avenue Neighborhood Corridor District: BA-2	25/30
Boston Avenue Neighborhood Corridor District: BA-3	25/30

[the remainder of this page is blank]

Amend Section 94-3.2 c (Table A) by incorporating the following table into the existing table and renumbering as appropriate:

	BA-1	BA-2	BA-3	PC ⁵	LC
A. RESIDENTIAL USES					
1. Detached one-unit dwelling	N	N	N	2 per Dwelling Unit	NA
2. Attached one-unit dwelling (Rowhouse)	Y	N	N	1.5 per Dwelling Unit ⁴	NA
3. Detached two-unit dwelling (Duplex)	Y	N	N	1.5 per Dwelling Unit ⁴	NA
4. Three-unit dwelling, Detached.	Y	N	N	1.5 per Dwelling Unit ⁴	NA
5. Multiplex (4-6 units)	Y	N	N	1.5 per Dwelling Unit ⁴	NA
6. Multiple dwelling (>6 units)	Y	Y	Y	1.5 per Dwelling Unit ⁴	NA
7. <u>Dormitory</u>	N	N	CDB	1 per 4 beds	1/15,000 s.f.
8. <u>Fraternity or sorority house</u>	N	N	N	1 per 4 beds	1/15,000 s.f.
9. Lodging or boarding house	CDB	CDB	CDB	1 per Guestroom	1/15,000 s.f.
10. Senior housing facility	CDB	CDB	CDB	1 per 2 Units	1/15,000 s.f.
11. Co-housing.	Y	Y	Y	1.5 per Dwelling Unit ⁴	NA
12. Congregate Housing.	N	N	N	1.5 per Dwelling Unit ⁴	NA
13. Townhouse	Y	N	N	1.5 per Dwelling Unit ⁴	NA
14. Historic Conversion	Y	Y	Y	1.5 per Dwelling Unit ⁴	NA

	BA-1	BA-2	BA-3	PC ⁵	LC
<u>15. Purpose-Built Student Housing</u>	N	N	CDB	1 per 4 beds	1/15,000 s.f.
B. COMMUNITY USES					
1. Museum	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
2. Community center or adult recreational center, nonprofit	CDB	CDB	CDB	1 per 750 s.f.	1/15,000 s.f.
3. Use of land or structures for religious purposes on land owned or leased by a religious sect or denomination	Y	Y	Y	1 per 140 s.f.	NA
4. Use of land or structures for educational purposes on land owned or leased by the Commonwealth or any of its agencies, subdivisions or bodies politic or by a religious sect or denomination or by a nonprofit educational corporation	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
5. Child care center or school aged child care program	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
6. Public fire station	Y	Y	Y	1 per 2 employees	1/50,000 s.f.
7. Public library	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
8. Other municipal uses	Y	Y	Y	NA	NA
9. Essential services	CDB	CDB	CDB	NA	NA
10. Hospital, nonprofit	N	N	N	1 per 4 beds	1/15,000 s.f.
11. Other Institution	CDB	CDB	CDB	1 per 750 s.f.	1/15,000 s.f.
C. OPEN RECREATIONAL AND AGRICULTURAL USES					
1. Private open recreational uses, available to the public	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.

	BA-1	BA-2	BA-3	PC ⁵	LC
2. Public open recreational uses	Y	Y	Y	1 per 750 s.f.	NA
3. Exempt agriculture	Y	Y	Y	NA	NA
4. Production of crops, horticulture and floriculture	N	N	N	NA	1/15,000 s.f.
5. Keeping and raising of livestock, including animal stable or kennel	N	N	N	NA	1/15,000 s.f.
D. COMMERCIAL USES					
1. Private entertainment or recreation facility excluding adult uses	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Public entertainment or recreation facility	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
3. Private nonprofit members only recreational club or lodge	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
4. Trade, professional, or other school operated for profit	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
5. Hotel	Y	Y	Y	1 per Guestroom	1/15,000 s.f.
6. Mortuary, undertaking or funeral establishment	N	N	N	1 per 140 s.f.	1/15,000 s.f.
7. Adult use	N	N	N	1 per 350 s.f.	1/15,000 s.f.
8. Brewery or taproom ¹	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
9. Artisanal Fabrication.	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
10. Artistic/Creative Production.	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
11. Work-Only Artists' Studio.	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.

	BA-1	BA-2	BA-3	PC ⁵	LC
12. Co-working Space.	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
13. Retail Store or Shop for Sale of Custom Work or Articles Made on the Premises.	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
E. OFFICE USES					
1. Business, professional, or government office	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Bank and other financial institution	CDB	CDB	CDB	1 per 350 s.f.	1/15,000 s.f.
3. Neighborhood Medical Office	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
4. Medical Office	CDB	CDB	Y	1 per 350 s.f.	1/15,000 s.f.
5. Clinic	CDB	CDB	Y	1 per 350 s.f.	1/15,000 s.f.
F. RETAIL AND SERVICE USES					
1. Retail sales	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Convenience retail	Y	Y	Y	1 per 500 s.f.	1/15,000 s.f.
3. Neighborhood retail	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
4. Drive through retail sales and consumer service	N	N	CDB ⁸	1 per 350 s.f.	1/15,000 s.f.
5. Consumer service establishment	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
6. Body art establishment	Y	Y	Y	1 per 850 s.f.	1/15,000 s.f.
7. Adult Use Marijuana Establishment — Cultivation	ZBA	ZBA	ZBA	1 per 350 s.f.	1/50,000 s.f.
8. Adult Use Marijuana Establishment — Manufacture and processing	ZBA	ZBA	ZBA	1 per 350 s.f.	1/50,000 s.f.

	BA-1	BA-2	BA-3	PC ⁵	LC
9. Adult Use Marijuana Establishment —Retail	ZBA	ZBA	ZBA	1 per 350 s.f.	1/15,000 s.f.
10. Adult Use Marijuana Establishment — Independent laboratory	ZBA	ZBA	ZBA	1 per 350 s.f.	1/15,000 s.f.
11. Doggy Daycare	CDB	CDB	CDB	<u>1 per 750 s.f.</u>	<u>1/15,000 s.f.</u>
G. EATING, DRINKING, AND ENTERTAINMENT ESTABLISHMENTS					
1. Eating place, without drive through	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
2. Eating place, with drive through	N	N	N	1 per 350 s.f.	1/15,000 s.f.
3. Neighborhood Café	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
H. MOTOR VEHICLE RELATED USES					
1. Motor vehicle light service station	N	N	N	1 per 350 s.f.	1/50,000 s.f.
2. Motor vehicle repair establishment	N	N	N	1 per 350 s.f.	1/50,000 s.f.
3. Motor vehicle sales or rental of new vehicles only, accessory storage entirely within enclosed structure	N	N	N	1 per 1,040 s.f.	1/50,000 s.f.
4. Outdoor motor vehicle sales and storage accessory to H.3	N	N	N	NA	NA
5. Motor vehicle sales and storage, outdoors	N	N	N	NA	NA
6. Class II used motor vehicle sales	N	N	N	NA	NA
7. Motor vehicle wash within enclosed structure	N	N	N	1 per 350 s.f.	1/50,000 s.f.

	BA-1	BA-2	BA-3	PC ⁵	LC
I. MISCELLANEOUS COMMERCIAL USES					
1. Parking area or garage not accessory to permitted principal use:	CDB	CDB	CDB	NA	NA
2. Parking area or garage accessory to a principal use which is on the same lot as a conforming principal use	Y	Y	Y	NA	NA
3. Parking area or garage accessory to a principal use which is within 500 feet of a conforming principal use but not necessarily in the same district	Y	Y	Y	NA	NA
4. Parking area or garage accessory to a principal use which is on the same lot as a nonconforming principal use	N	N	N	NA	NA
5. Parking area or garage accessory to a principal use which is within 500 feet of a conforming principal use in the same MUZ district ³	N	N	N	NA	NA
6. Open Storage	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
7. Moving of land	N	N	N	NA	NA
8. Radio and television tower	N	N	N	NA	NA
9. Solar energy system	Y	Y	Y	NA	NA
J. WHOLESALE, TRANSPORTATION, INDUSTRIAL USES					
1. Fuel and ice sales	N	N	N	1 per 1,400 s.f.	1/50,000 s.f.
2. Motor freight terminal	N	N	N	NA	NA

	BA-1	BA-2	BA-3	PC ⁵	LC
3. Printing and publishing	N	Y	Y	1 per 1,400 s.f.	B
4. Railroad right-of-way	Y	Y	Y	NA	NA
5. Manufacturing	N	N	N	1 per 2 employees	1/50,000 s.f.
6. Research and testing laboratory	Y	Y	Y	1 per 2 employees	1/50,000 s.f.
7. Plumbing or carpentry shop, and other similar service or repair shops	<u>CDB</u>	<u>CDB</u>	<u>CDB</u>	1 per 350 s.f.	1/15,000 s.f.
8. Wholesale bakery or food processing plant	N	N	N	1 per 2 employees	1/15,000 s.f.
9. Wholesale laundry, cleaner, dyer or similar use	N	N	N	1 per 1,400 s.f.	1/50,000 s.f.
10. Warehouse, Wholesale establishment	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
11. Mini or self-storage warehouse	N	N	N	<u>1 per 1,400 s.f.</u>	<u>1/15,000 s.f.</u>
12. Distillery or winery.	Y	Y	Y	<u>1 per 350 s.f.</u>	<u>1/15,000 s.f.</u>
13. Food Production Facility	Y	Y	Y	<u>Discuss</u>	<u>1/50,000 s.f.</u>
14. Life Science Facility	N	Y	Y	<u>Discuss</u>	<u>1/50,000 s.f.</u>
15. Light Manufacturing	Y	Y	Y	<u>Discuss</u>	<u>1/50,000 s.f.</u>
16. Maker Space	Y	Y	Y	<u>Discuss</u>	<u>1/50,000 s.f.</u>
17. Shared-use Kitchen	CDB	CDB	CDB	<u>1 per 1,000 s.f.</u>	<u>1/15,000 s.f.</u>
K. ACCESSORY USES					
1. Accessory Dwelling Units (see §94-8.2)	Y	N	N	N	N
2. Home occupation (see § 94-3.4)				1 per 350 s.f.	NA
As of right	Y	Y	Y		

	BA-1	BA-2	BA-3	PC ⁵	LC
By special permit	Y	Y	Y	1 per 350 s.f.	NA
3. Accessory child care center or school aged child care program	Y	Y	Y	Y	
4. Family day care home	Y	Y	Y	1 per 2 employees	NA
5. Family day care home, large	Y	Y	Y	1 per 2 employees	NA
6. Adult day care home	CDB	CDB	CDB	1 per 2 employees	NA
7. Renting of one or two rooms without separate cooking facilities to lodgers within a dwelling unit to one or two total lodgers	Y	Y	Y	1 per Guestroom <u>N/A</u>	NA
8. Noncommercial greenhouse, tool shed, or similar accessory structure	Y	Y	N	NA	NA
9. Swimming pool	Y	Y	Y	NA	NA
10. Scientific research and development, as provided at <i>Section 94-3.3.3.1</i>	Y	Y	Y	NA	NA
11. Keno	CC	CC	CC	NA	NA
12. Open storage	N	N	N	NA	NA
13. Heavy repair operations	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
L. OTHER PRINCIPAL USES					
1. Mixed-Use, Community	Y	Y	Y		
2. Mixed-Use Development	Y	Y	Y		

Notes:

Some uses in this table may be subject to Site Plan Review. For more information see § 94-11.7.2

¹ For Breweries operating with seven barrels or under - Y.
For Breweries operating with more than seven barrels - BA.

² [Rescinded.]

³ Measured to the closest point of the structure.

⁴ Incentives for alternative residential parking requirements, except in the BANCD.

Affordable housing units	0.5 per Dwelling Unit
Located within ½ mile of high-frequency transit	0.8 per Dwelling Unit

Incentives for residential parking requirements within the BANCD: The minimum parking requirement can be reduced to 0.8 per dwelling unit by meeting the requirements in *Section 94-9.8.9 Reductions to parking space requirements* for any building within 1 mile of a Subway Station.

⁵ Notwithstanding the above tables, nonresidential uses with 5,000 square feet or less of gross leasable floor area exempt from any minimum.

⁶ Parking as a principal use is only permitted in BA-3.

⁷ Five thousand (5,000) or less Gross Floor Area (GFA) – Y.
More than five thousand (5,000) GFA – CDB.

⁸ Within the BA-3 Subdistrict in the Boston Avenue Neighborhood Corridor, the Community Development Board may grant a special permit for a Drive-through for a pharmacy, subject to the use standards in *94-9.8.5 Use Standards*.

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Amend Section 94-12.0 Definitions

1. Purpose-Built Student Housing. A building not owned or operated by a college or university that contains bedrooms primarily for students. Student residents must be enrolled in an accredited post-secondary educational institution. Bedrooms may be arranged around a common area with a kitchen which is shared by individuals renting the bedrooms, or along a hall which provides access to a common kitchen space. Other shared or common facilities include sanitary, bathing, recreation, laundry, mail/package rooms, storage, trash and recycling, bicycle storage, and vehicular parking. Bedrooms shall be rented on an annual basis or for an academic semester or summer term. Accessory uses may include fitness facilities, pools, parking areas, and similar facilities. A Lodging or boarding house is not a private dormitory, nor is rental of single-family homes to students.
- ~~2. **Dormitory:** Any dwelling (other than a sorority or fraternity house) owned or controlled by an educational institution and occupied primarily as a place of temporary residence for persons who are employed or enrolled at the educational institution.~~

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Section 94-9.8 BOSTON AVENUE NEIGHBORHOOD CORRIDOR DISTRICT

94-9.8.1 Purpose

The purpose of the Boston Avenue Neighborhood Corridor District (BANCD) is to allow a mix of uses, including residential, multifamily, and commercial, to meet the following needs:

1. Wider variety of uses and building types to support jobs and economic development near established residential neighborhoods, providing options for living within walking distance of jobs, goods, and services and the Green Line T stations.
2. Fluid transitions to and from the Tufts University campus to allow an integrated approach to living working and learning along Boston Avenue from the Somerville line north of Stoughton Street to the Somerville border at Ball Square.
3. Mixed-use, multifamily, and commercial uses at a density to reinforce non-vehicular travel between the adjacent neighborhoods to the jobs, goods, and services within the BANCD.
4. Development standards to provide landscape and height buffers from new construction within the BANCD for the existing abutting neighborhoods.

94-9.8.2 Applicability

The BANCD replaces the existing zoning districts and is shown on the Zoning Map, City of Medford, Massachusetts, as amended. An applicant may develop within these districts in accordance with the provisions of *Section 94-9.8* and other relevant sections of the Zoning Ordinance.

1. The BANCD is comprised of the following subdistricts:
 - a. *BA-1*. This mixed-use subdistrict allows a mix of residential and commercial uses at a lower scale of building size and massing.
 - b. *BA-2*. This mixed-use subdistrict allows a mix of residential and commercial uses at a medium scale of building size and massing.
 - i. **BA-2a. This subdistrict location and surrounding characteristics allow for greater growth and development.**
 - ii. **BA-2b. This subdistrict has smaller-scale requirements to respond to its surroundings and provide a transition towards the residential neighborhoods.**
 - c. *BA-3*. This mixed-use subdistrict allows a mix of residential and commercial uses at a larger scale of building size and massing.

94-9.8.3 Dimensional Requirements

1. The following dimensional requirements apply to the BANCD.

Table 9-8.1 Table of Dimensional Requirements for the BANCD

Dimensions	BA-1	BA-2		BA-3
Lot Area – square feet (Min)	3,000	3,000		5,000
Frontage – feet (Min)	30	40		40
Façade Build Out (Min)	60%	80%		80%
Active Ground Floor (Min)	75%	75%		75%
Historical Conversion (Max) ¹	Y	Y		Y
Height ²				
Max Base Height.		BA-2a	BA-2b	BA-3
Stories	<u>3</u>	<u>4</u>	<u>3</u>	<u>5</u>
Feet	<u>38</u>	<u>50</u>	<u>38</u>	<u>62</u>
Max Incentive Height (Stories)				BA-3
Stories	+1	+3	+1	+2 ⁶
Feet (total height)	<u>50</u>	<u>86</u>	<u>50</u>	<u>86</u>
Setbacks (ft) ⁵				
		BA-2a	BA-2b	BA-3
Front (Min/Max)	0/20	0/20	20 for parcels on Winchester Street; BA- 2a applies to all other parcels.	0/20
Side	0	0		0
Rear	0	0		0
Upper Story Stepbacks (ft)				
Front, 6 th story and above	N/A	10		10
Stormwater and Landscaping				
Building Coverage (Max) ³	80%	80%		80%
Green Score ⁴				
Minimum	25	25		25
Ideal	30	30		30
Pervious Surface (Min) ⁴	20%	20%		10%
Open Space Landscape (Min)	15%	15%		10%

¹ The maximum permissible number of dwelling units is determined by dividing the Gross Floor Area of the existing principal structure by six hundred (600) sqft. The size of each individual unit is subject to the requirements of the Building Code. Additions and expansions to the existing building shall not increase the number of units allowed.

² Section 94-4.2.6 does not apply to any development within the BANCD. See 94-9.8.4.1 Height Exemptions. See 4-9.8.3.2.c for height transition requirements for properties adjacent to residential districts.

³ The Maximum Building Coverage can be increased to one hundred (100) percent if the development achieves the Ideal Green Score.

⁴ The Green Score only applies to the construction of any new principal building or major renovation that:

- a. is located within the FEMA National Flood Hazard Layers; or
- b. requires Site Plan Review.

In those cases, the Pervious Surface requirement does not apply.

⁵ See 94-9.8.3.2.b for setback requirements for properties adjacent to residences with 4 or fewer units and residential districts. See 94-9.8.3.2.a for requirements for Front Setbacks and 94-9.8.3.2.d for Front Setbacks for Infill Lots. **For parcels on Winchester Street in BA-2b, the 20' setback includes the portion of the sidewalk required in 94-9.8.3.2.a Front Setbacks that is not in the public right of way. For example, if the public sidewalk is six (6) feet, and the developer is required to use six (6) feet of the front setback to create a twelve (12) foot sidewalk, then that six feet is part of the minimum twenty (20) foot setback.**

⁶ **Within 60' feet of North Street, the height incentive is not permitted, and the maximum height is five stories.**

Commented [E11]: For discussion by member of the City Council and the Community Development Board.

2. The following additional dimensional requirements apply to the BANCD.
 - a. *Front Setbacks.* The building façade for new construction shall be set back from the lot line at a distance sufficient to create a twelve (12) foot sidewalk in conjunction with an existing City sidewalk. If a twelve (12) foot sidewalk is infeasible because the parcel depth is insufficient to allow new construction and the expanded sidewalk width, the setback requirements may be reduced to allow for **a ten-foot (10') sidewalk.** A maximum setback of twenty (20) feet is allowed to create an active public plaza.
 - b. *Side and Rear Setbacks.* If the proposed development is adjacent to a residential district or an existing lot with a residential use of four (4) units or fewer, the applicant shall provide a landscaped buffer of at least ten (10) feet from the lot line. The property owner shall maintain the buffer and landscaping.
 - c. *Height Transition to Adjacent Residential Districts.* For any lot within the BANCD that abuts a residential district (as defined by *Section 94-2.1*), a height stepback is required along the side or rear lot line that directly abuts the residential district. The height stepback is calculated by a forty-five (45) degree angle beginning at the third floor and extending to the highest floor of the building in the BANCD. The fourth floor and above shall not break the plane of that forty-five (45) degree angle. **Properties that abut the MBTA-owned rail right-of-way are exempt from this requirement provided that the requirements of 94-9.8.8.2.b are met.**
 - d. *Setbacks for Infill Lots.* If the adjacent buildings are set back more than twenty (20) feet from the front lot line, infill buildings may either comply with the

requirements of Table 9.8-1: Table of Dimensional Requirements for the BANCD or match the setback line of the adjacent building closest to the front lot line to provide consistency along the street. The deeper setback area shall be either hardscaped or landscaped to provide a pedestrian-oriented amenity.

- e. *Multi-Building Lots.* In the BANCD, lots may have more than one (1) principal building.
- f. *Ground Floor Active Frontage.* Active uses are required on the ground floor of any building with its principal façade parallel to Boston Avenue or Auburn Street are subject to the Active Frontage percentages set forth in Table 9.8.-1 Table of Dimensional Requirements for the BANCD. Active uses include retail, restaurants, cafés, personal services, other active commercial uses, publicly accessible office or residential lobbies, and active building amenity spaces (e.g., gym, residential common space). Where active commercial uses are not feasible, the following may be substituted: residential stoops; a setback of landscaped open space or public space with seating; public art, such as a mural or sculpture; or any other use that provides an engaging ground floor for pedestrian activity.

94-9.8.4 Dimensional Waivers.

The following waivers are available to the Site Plan Review or Special Permit Granting Authority for projects within the BANCD, upon a finding that such waiver would not cause substantial detriment to the neighborhood.

1. ***Height Exemption.*** The limitation on the height of buildings shall not apply to chimneys, ventilators, towers, silos, spires, or other ornamental features of buildings, which features are in no way used for living purposes and do not constitute more than twenty-five (25) percent of the ground floor area of the building.
2. ***Height Waiver: Energy-Efficiency.*** The Site Plan Review Authority or Special Permit Granting Authority may waive the height and setbacks in 94-9.8.3 *Dimensional Standards* to accommodate the installation of any building system or equipment which conserves, reduces, or offsets the building energy use. Where feasible, mechanical components shall be placed as close to the center of the roof as possible. Such installations shall not create a significant detriment to abutters in terms of noise or shadow and shall be appropriately integrated into the architecture of the building and the layout of the site. The installations shall not provide additional habitable space within the development.
3. ***Height Stepback Waiver.*** If a building is subject to a front stepback and rear or side stepbacks, the Community Development Board may waive the strict dimensional requirement of any of the stepbacks, provided that priority is given to retaining the stepback(s) in 94-9.8.3.2.c *Height Transition to Adjacent Residential Districts.*

4. **Setback Waiver: Drop-off zone.** The required setback distances may be waived to allow for a cut-out along the curb for loading and short-term parking for deliveries or drop-off/pick-up zones. Such a cut-out shall be coordinated with City staff.
5. **Eligible Historic Buildings.** The Community Development Board may, by special permit, waive the following requirements to incentivize the reuse of eligible historic structures.
 - a. *Dimensional Standards.* Structures and sites determined to be an eligible historic building shall be exempt from one (1) or more of the following dimensional requirements: lot size, frontage, building coverage, green score, pervious surface, and open space, landscaped requirements, provided that the exterior is rehabilitated to (i) the Secretary of the Interior's Standards for the Treatment of Historic Properties or (ii) as approved by the Medford Historic Commission and Community Development Board after a public hearing. If the applicant and the Community Development Board agree that the Secretary of the Interior's *Standards for the Treatment of Historic Properties* are inappropriate for the proposed project, then the Medford Historical Commission shall participate in a joint public hearing with the Community Development Board and provide an advisory opinion on the appropriateness of the proposed changes within fourteen (14) days of the hearing.
 - b. *Parking Waiver.* A structure or site determined to be an eligible historic building shall be exempt from all use-based parking space requirements (listed in *Section 94-3.2 Table of Use Regulations Table A*) provided that the exterior is rehabilitated to the Secretary of the Interior's Standards for the Treatment of Historic Properties, or as approved by the Medford Historic Commission and Community Development Board, as noted in *94-9.8.4.3a*.
 - c. *Definition of Eligible Historic Building.* For the purposes of this section, an "Eligible Historic Building" is any building or structure that satisfies one (1) or more of the following criteria:
 - i. Listed on the National Register of Historic Places, either individually listed or designated as a contributing structure in a National Register Historic District; or
 - ii. Listed on the State Register of Historic Places; or
 - iii. Has been designated by the Medford Historical Commission as a historically significant building or structure, following a finding by the Commission that such building or structure:
 1. Is associated with one (1) or more historical persons or events, or with the cultural, economic, social or political history of the Town or Commonwealth; or

2. Possesses architectural value or significance in terms of period, style, method of construction, or association with a historically prominent architect or builder, either by itself or in conjunction with a group of buildings or structures.
- d. *Existing Gross Floor Area.* These waivers apply to the existing gross floor area of the eligible historic building. Any addition, expansion, or new construction that increases the gross floor area of the structure shall not benefit from these waivers.

94-9.8.5 Use Standards.

1. *Historic Conversion.*

- a. No new dwelling unit created by the conversion of an existing dwelling into a greater number of units or by addition or enlargement of an existing dwelling shall be permitted unless the requirements of minimum lot area, maximum building coverage, and minimum pervious surface requirements of the district in which the structure is located are satisfied after the conversion or enlargement.
- b. The required setbacks shall be those of the structure existing at the time of the conversion. However, any construction occurring outside the limits of the existing structure shall be subject to the setback requirements of the district in which the structure is located.
- c. The maximum height shall be that height permitted in the district in which the structure is located, or the existing building height, whichever is greater.
- d. Open space requirement shall be as required in the district in which the structure is located.
- e. Off-street parking shall be provided as required in *Section 94-3.2 Table of Use Regulations (Table A)*.
- f. There shall not be any changes to the exterior of the structure other than those required by building code.
- g. Each unit shall have an independent entrance directly from outside the building or through a common vestibule. Where feasible, new additional independent entrances accessed directly from outside the building shall not be located on any building wall facing a street.
- h. Fire escapes and outside stairways leading to a second or higher floor shall, where feasible, be located on the rear of the building and shall not be located on any building wall facing a street.

2. *Queuing for a Pharmacy Drive-Through Facility*

In addition to meeting the parking requirements in *Section 94-6.1*, a Pharmacy with a Drive-Through shall comply with the following standards:

- a. *Number of Windows.* No more than one combined teller and pick-up window is allowed. The Community Development Board may waive this to allow for a single teller window with a single pick-up window upon showing of good cause.
- b. *Window Locations.* Windows shall be located to minimize the impact of direct glare from headlights in the queue on residential properties in line-of-sight from the queuing lane.
- c. *Spaces Required.* A minimum of three queue spaces is required per window.
- d. *Minimum Dimensions.* Each queue space shall be at least ten (10') feet in width and twenty (20') feet in length.
- e. *Design.* Each queue lane shall be clearly defined and designated so as not to conflict or interfere with other pedestrian or vehicular traffic on the site.
- f. *Location.* A stacking area shall not be located adjacent and parallel to a street or public right-of-way, unless the review authority determines that there is no feasible alternative.
- g. *Signs.* Each entrance to and exit from a drive-through aisle shall be clearly marked to show the direction of traffic flow by signs and pavement markings or raised curbs.

3. ***Purpose-Built Student Housing.***

In addition to meeting all other standards of this article, and the requirements of *Section 94-6.4 Performance standards for multiple dwelling or nonresidential use*, Purpose-Built Student Housing shall comply with the following standards:

- h. *Location:* Purpose-Built Student Housing shall not be located more than one mile from a college or university, measured in a straight line from the nearest portion of the Purpose-Built Student Housing to the nearest boundary line of the parcel upon which the college or university is located.
- i. ***Relationship of Beds and Bedrooms.*** A building containing Purpose-Built Student Housing shall have no fewer than 150 **beds and there shall be no more than two beds per bedroom.**
- j. ***Non-Student Residency.*** **Up to twenty percent (20%) of total residents may be either non-students or student of educational institutions not in Medford or Somerville. The number of non-student residents shall be no more than 20% of the number of total residents, to be The management team shall documented these three residential categories at the start of each semester and reported to**

the City upon request. All **other** student residents shall be enrolled at an educational institution in Medford or Somerville.

- k. **Non-residential Use. Retail is allowed on the ground floor of the building.**
- l. **Inclusionary Zoning. This use is exempt from the requirements of Section 94-8.1 Inclusionary Housing and is not eligible for any affordability incentives under 94-9.8.6 Development Incentives.**
- m. *On-Site Professional Management.* A professional manger or management team shall be onsite 24 hours per day, seven days per week, including holidays.
 - i. **A management team shall include a Property Manager, an Assistant Manager, Resident Assistants, maintenance staff and security in numbers sufficient to staff the property.**
 - ii. **Student residents shall be held to the Code of Conduct established by their respective college or university.**
 - iii. **The manager/ management team shall **seek to** establish a formal relationship with the host college or university to coordinate management issues. Meetings shall take place at least monthly and be documented.**
- n. *Annual Certificate of Occupancy.* The manager shall apply for an annual Certificate of Occupancy from the Building Department. The application shall include the percentage of student residents to non-student residents. **The Community Development Board shall set a fee for this certificate. Such fee shall be reviewed annually.**
- o. *Operation and Management Plan.* **In addition to the required submissions for site plan review by the CDB pursuant to Section 94-11.7 Site Plan Review,** the management company shall submit an Operation and Management Plan that describes the following:
 - a. Locations and entrances and exits;
 - b. Security plan, including areas which are resident-only access and areas open to nonresidents;
 - c. Hours of operation, including any non-residential uses;
 - d. Any non-housing uses on the site, including the location and hours of operations of amenities available to the residents;
 - e. Noise control plan;

- f. Location of parking and loading for residents, visitors, delivery and moving services, and any outside customers of any non-residential uses.
- g. Waste disposal plan;
- h. A description of the duties and responsibilities of the staff members by title; and
- i. A copy of the resident conduct policy and sample lease agreement.
- p. *Conversion to Non-Student Housing. If the owner of a Purpose-Built Student Housing development wishes to convert to a non-Purpose-Built Student Housing use, said owner shall submit an application to the Community Development Board (CDB) for such conversion that meets all the zoning requirements for the proposed new use. If the proposed new use is a conversion to non-student housing, the development is not eligible for parking variances and must comply with the requirements of 94-8.1 Inclusionary Housing at the time of conversion.*

94-9.8.6 Development Incentives

In exchange for incorporating certain provisions that further the City's goals for affordability, economic development, environmental sustainability, and climate resiliency, Applicants may receive Development Incentive Bonuses that allow for additional stories beyond the base number of stories that are allowed as of right under *Table 9.8-1: Table of Dimensional Requirements for the BANCD*. However, the total number of stories is limited to the maximum number of stories allowed in each subdistrict, as shown in *Table 9.8-1: Table of Dimensional Requirements for the BANCD*. Additional stories shall comply with any setback, stepback, or other dimensional requirements and the development and design standards in *94-9.8.3 Dimensional Requirements* and *94-9.8.8 Development Standards*.

Table 9.8-2: Table of Development Incentive Bonuses for the BANCD District (BANCD).

Table of Development Incentive Bonuses.		
Incentive 1: Affordability		
Incentive 1A: Deeper Affordability:		
Minimum # of affordable units at 65% AMI:	0.3 x Total required affordable units	One (1) additional story
Minimum # affordable units at 80% AMI:	Remaining # of required affordable units	
Incentive 1B: More Affordable Units:		
Minimum # of Affordable Units at 80% AMI:	1.3 x Total required affordable units	One (1) additional half-story
Example: For a 21-unit development, 3 affordable units are required. To redeem Incentive 1A: 1 unit at 65% AMI (0.3 x 3 units total = 0.9, rounded up to 1 unit) and 2 units at 80% AMI (3 units total - 1 unit at 65% AMI = 2 units). To redeem Incentive 1B: 4 units total at 80% AMI (1.3 x 3 units total = 3.9, rounded up to 4 units). To redeem both Incentive 1A and 1B: 2 units at 65% (0.3 x 4 units total = 1.2, rounded up to 2 units) and 2 units at 80% AMI (4 units total - 2 units at 65% AMI = 2 units).		
Incentive 2: Community Amenities (privately maintained)		
Indoor pedestrian seating or outdoor pedestrian plaza of at least three hundred (300) square feet and accessible to the public during business hours.		One (1) additional half story
One of the following neighborhood open spaces: • Pocket Park • Garden • Playground • Skate Park		One (1) additional half-story
The development solar installation provides fifty (50) percent of its output in the form of electricity or net metering credits to		One (1) additional story

Table of Development Incentive Bonuses.	
community-shared solar programs, low-income solar programs and municipal or other governmental entity owned solar programs.	
The development makes at least twenty (20) percent or twenty (20) spaces, whichever is greater of its parking space available to the public, whether paid or shared with nearby developments. This incentive covers accessory structured parking only.	One (1) additional half story
Incentive 3: Community Amenities (publicly maintained)	
Streetscape Improvements along a public street. Such improvements may include one or more of the following: street trees, street furniture (benches, trash/recycling receptacles, bicycle racks), and/or pedestrian-scale lighting. The Engineering Division shall provide the standards for tree plantings, street furniture, and lighting to create a consistent treatment on the public sidewalk. The improvement shall be limited to the frontage of the lot or lots that are the subject of the application.	One (1) additional half-story
Incentive 4: Vibrant Neighborhoods	
Parking is concealed below grade or within a building structure.	One (1) additional half-story
The development project provides a minimum of fifty (50) percent or the ground floor at rents no less than fifteen (15) percent below market for a minimum tenancy of three (3) years to qualified nonresidential tenants [nonprofits or local businesses under ten (10) employees]. Market rent shall be first determined by comparing the base rents of other commercial ground floor leases in the same project and if none, then comparing base rents for comparable commercial space in the City of Medford as found on recognized listing services such as MLS and LoopNet. Evidence of the manner in which market rent was determined shall be provided to the Office of Planning, Development, and Sustainability.	One (1) additional half-story
A rehabilitation project maintains the pre-construction rent for existing ground-floor tenants for two (2) years after the post-construction Certificate of Occupancy has been granted.	One (1) additional half-story
Choose Either:	
a. A new development rehabilitates an eligible historic building, or integrates its historic façade(s) visible from a public right-of-way within the new development, provided that the building/façades are rehabilitated to the Secretary of the Interior's Standards for the Treatment of Historic Properties or the standard as described in 94-9.8.4.3a; or b. A new development rehabilitates the principal street-facing façade of an eligible historic building, or its key	For a: One (1) additional story

Table of Development Incentive Bonuses.	
architectural elements, provided that the façade or architectural elements are rehabilitated to the Secretary of the Interior’s Standards for the Treatment of Historic Properties or the standard as described in 94-9.8.4.3a.	For b: One (1) additional half-story
Incentive 5: Environmental Resilience	
The development project meets the Ideal Green Score.	One (1) additional half story
The development project is certifiable as LEED Platinum or equivalent standard.	One (1) additional half-story

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94-9.8.6 Design Guidelines and Applicability of Development Standards

1. **Design Guidelines.** The Community Development Board may adopt and amend, by simple majority vote, Design Standards which shall be applicable to all rehabilitation, redevelopment, or new construction submitted under this BANCD. Such Design Guidelines may address the scale and proportions of building, the alignment, width, and grade of streets and sidewalks, the type and location of infrastructure, the location of building and garage entrances, off-street parking, the protection of significant natural site features, the location and design of on-site open spaces, exterior signs, and buffering in relation to adjacent properties. Design Guidelines may contain graphics illustrating a particular standard or definition to make such standard or definition clear and understandable.
2. **Applicability of Development Standards.** *Section 94-9.8.6 Development Standards* shall apply to all projects submitted under this BANCD. These standards, along with any Design Guidelines adopted under paragraph 1, above, are components of the Site Plan Review and Special Permit processes as defined in this Zoning Ordinance.

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94-9.8.8 Development Standards

1. *Site Standards.*

- a. *Connections.* Sidewalks shall provide direct connections among building entrances, the public sidewalk (if applicable), bicycle storage, and parking.
- b. *Sidewalk materials.* Sidewalks shall be continuous across driveways, using the same materials and grade and level as the sidewalk on either side of the driveway. Sidewalk materials shall follow standards set by the City's Department of Engineering.
- c. *Vehicular access.* Where feasible, curb cuts shall be minimized, and shared driveways encouraged. Curb cuts for one-way access shall be no more than twelve (12) feet in width, while curb cuts for two-way traffic shall be no more than twenty (20) feet in width. Designated drop-off and pick-up areas for deliveries and ride-sharing companies should be incorporated to reduce conflicts associated with double-parking and blocking of bicycle lanes, crosswalks, and bus stops. These areas should be clearly marked with signs and conveniently located near entrances to buildings and major destinations.
- d. *Circulation.* Parking and circulation on the site shall be organized to reduce the amount of impervious surface. Where possible, parking and loading areas shall be connected to minimize curb cuts onto public rights-of-way.
- e. *Open Space.* Open Space shall be contiguous, to the greatest extent feasible, and connected to the pedestrian network. Isolated pockets of space that cannot be accessed for maintenance are prohibited. Open Space may be either private or public. Public open space shall be in the front or side setback. A minimum one-third (1/3) of the required open space, permeable, shall be landscaped.
- f. *Screening for surface parking.* Surface parking adjacent to a public sidewalk shall be screened by a landscaped buffer of sufficient width to allow the healthy establishment of trees, shrubs, and perennials, but no less than six (6) feet. The buffer may include a fence or wall of no more than three (3) feet in height unless there is a significant grade change between the parking and the sidewalk. Chain-link and vinyl fences are prohibited.
- g. *Parking materials.* The parking surface may be concrete, asphalt, decomposed granite, bricks, or pavers, including pervious materials but not including grass or soil not contained within a paver or other structure.
- h. *Plantings.* Plantings shall include species that are native or adapted to the region. Plants on the Massachusetts Prohibited Plant List, as may be amended, shall be prohibited.

- i. *Lighting.* Light levels shall meet or exceed the minimum design guidelines defined by the Illuminating Engineering Society of North America (IESNA) and shall provide the illumination necessary for safety and convenience while preventing glare and overspill onto adjoining properties and reducing the amount of skyglow.
- j. *Mechanicals.* Mechanical equipment at ground level shall be screened by a combination of fencing and plantings. Rooftop mechanical equipment shall be screened if visible from a public right-of-way.
- k. *Dumpsters.* Dumpsters shall be screened by a combination of fencing and plantings. Dumpsters or other trash and recycling collection points located within the building are preferred.
- l. *Stormwater management.* Strategies that demonstrate the compliance of the construction activities and the proposed project with the most current versions of the Massachusetts Department of Environmental Protection Stormwater Management Standards, the Massachusetts Stormwater Handbook, Massachusetts Erosion Sediment and Control Guidelines, and the City of Medford's Stormwater Management Rules and Regulations. The applicant shall also provide an Operations and Management Plan for both the construction activities and ongoing post-construction maintenance and reporting requirements.

2. General Building Standards.

- a. *Position relative to the principal street.* The primary building shall have its principal façade and entrance facing the principal street.
- b. *Daylight Minimum.* New construction (which includes additions) shall be designed to minimize impacts on sunlight access for existing residential buildings in a residential district (as defined by *Section 94-2.1*). The goal of this standard is to protect the well-being of residents and preserve the energy efficiency of existing buildings.
 - i. This standard shall be applied to any new construction in the BANCD subject to Site Plan Review.
 - ii. The minimum daylight standard applies to new construction that casts a shadow on one or more existing residential buildings located in a residential zoning district. Such existing buildings shall receive a minimum of two (2) hours of direct sunlight as calculated on February 21 and October 21.
 - iii. To demonstrate that this standard has been met, the applicant shall provide a shadow study as required by the Medford Site Plan Rules and Regulations as amended by the Community Development Board.

- c. *Entries.* Where feasible, entries shall be clearly defined and linked to a paved pedestrian network that includes the public sidewalk.

3. Multiple buildings on a lot.

- a. *Location of Mixed Uses.* For a mixed-use development, uses may be mixed within the buildings or in separate buildings.
- b. *Orientation.* The orientation of multiple buildings on a lot should reinforce the relationships among the buildings. All building façade(s) shall be treated with the same care and attention in terms of entries, fenestration, and materials.
- c. *Position relative to the street.* Building(s) adjacent to a public street shall have a pedestrian entry facing that public street.

4. Mixed-use development.

- a. *Access.* In a mixed-use building, access to and egress from the residential component shall be clearly differentiated from access to other uses. Such differentiation may occur by using separate entrances or egresses from the building or within a lobby space shared among different uses.
- b. *Connections.* Paved pedestrian access from the residential component shall be provided to residential parking and amenities and to the public sidewalk, as applicable. Paved surfaces may include pervious paving materials.
- c. *Material Storage.* Materials for non-residential uses shall be stored inside or under cover and shall not be accessible to residents of the development.
- d. *Shared Outdoor Space.* Multi-family housing and mixed-use development shall have common outdoor space that all residents can access. Such space may be in any combination of ground floor, courtyard, rooftop, or terrace. All outdoor space shall count towards the project's minimum Open Space requirement.

5. Corner Lots. A building on a corner lot shall indicate a primary entrance either along one (1) of the street-facing façades or on the primary corner as an entrance serving both streets.

- a. *Connections.* Such entries shall be connected by a paved surface to the public sidewalk, if applicable.
- b. *Façade Design.* All façades visible from a public right-of-way shall be treated with similar care and attention in terms of entries, fenestration, and materials.
- c. *Fire Exits.* Exterior emergency staircases and emergency-only exit doors serving more than one (1) story shall not be located on either of the street-facing façades. If the only feasible location for emergency-only exit doors is on a street-facing

façade, the door shall be inset into the façade so that outward-swinging doors do not obstruct pedestrian access.

6. **Parking.** Parking shall be subordinate in design and location to the principal building façade.
 - a. *Surface parking.* Surface parking shall be located to the rear or side of the principal building. Parking shall not be in the setback between the building and any lot line adjacent to the public right-of-way.
 - b. *Integrated garages.* The principal pedestrian entry into the building shall be more prominent in design and placement than the vehicular entry into the garage.
 - c. *Parking structures.* Above-grade parking structures (stand-alone or within a residential, commercial, or mixed-use building) shall be subordinate in design and placement to the primary uses. Ground-floor parking levels shall be wrapped with active uses such as commercial/retail, community spaces, or residential amenity spaces. Exposed facades of upper parking levels shall incorporate design treatments such as public art installations, vertical planting, or other architectural features for visual interest and to disguise the parking uses within. Vehicular openings shall have doors.
 - d. *Electrical Vehicle (EV) charging spaces.* One (1) EV charging space is required for every twenty (20) parking spaces, rounded up to the next highest number of EV stations.
 - e. *Bicycle Parking.* One (1) covered bicycle parking space per **two (2)** dwelling units is required. More bicycle parking is encouraged, including locations to plug in electric bikes.
7. **Waivers.** Upon the request of the Applicant, the Site Plan Review Authority may waive the requirements of 94-9.8.8 *Development Standards* in the interests of design flexibility and overall project quality and upon a finding of consistency of such variation with the overall purpose and objectives of the BANCD.

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94-9.8.9 Reductions to parking space requirements. This section supersedes 94-6.1.9 Shared Parking.

1. Purpose.

- a. To support the efficient use of land area for productive uses that contribute toward the City's tax base;
- b. To help prevent land from being unnecessarily devoted to the parking of motor vehicles, and help preserve green space and other valuable ecological, historic and cultural resources;
- c. To encourage the efficient use of existing parking resources;
- d. To allow parking to be shared between uses on the same lot or between buildings on the same block when the actual demand for parking is less than the total number of spaces required by this Ordinance for each individual use;
- e. To help reduce stormwater management costs, water pollution and heat island effects; and
- f. To improve walkability.

2. Residential Parking. Per Section 94-3.2 c (Table A), footnote 4, the residential parking requirement may be reduced to 0.8 parking spaces per unit if:

- a. The development is an addition or expansion that increases the existing gross floor area of an eligible historic building, or
- b. The development meets the following conditions:
 - i. Provide one (1) bicycle parking space per unit. A minimum of fifty (50) percent of the required bicycle spaces shall be covered or integrated into the structure of the building(s).
 - ii. Provide a loading zone for commercial vehicles.
 - iii. Provide a fifteen (15) minute pick-up/drop-off space.
 - iv. Join a local Transportation Management Association at a Partner level (or equivalent) or higher membership to be renewed annually.

3. Dual Use for Mixed-Use Developments. Dual-use parking may be used for any mixed-use development that includes uses with parking demands peaking at different times of the day.

- a. The Table 9.8-3 provides the method for calculating dual use parking for buildings with more than one (1) use type within the same lot.

Table 9.8-3 Dual Use Parking Ratios

Use 1	Use 2	Sharing Factor
Residential	Office	0.7
Residential	Commercial	0.8
Residential	Lodging	0.9
Lodging	Commercial	0.75
Office	Commercial	0.8
Office	Lodging	0.7

- b. The parking required for any two (2) functions on a lot is calculated by multiplying the number of spaces required by the lesser of the two (2) uses by the appropriate ratio from the Table 9.7-3 and adding the result to the greater use parking requirement.
- c. Example: For a building with a Residential Use requiring one hundred (100) spaces and a Commercial Use requiring twenty (20) spaces, the twenty (20) spaces multiplied by the sharing factor of 0.8 would reduce the total requirement to one hundred (100) plus sixteen (16) spaces or one hundred and sixteen (116) spaces instead of one hundred and twenty (120) spaces.
- d. This reduction may be used in addition to other reductions in parking requirements.

94-9.8.10 Multi-Building Shared Parking

1. Purpose and Intent.

- a. To allow parking to be shared between buildings on the same block or within seven-hundred and fifty (750) feet of the building which they are to serve, when the actual demand for parking is less than the total number of spaces required by this Ordinance for each individual use.
- b. To allow development that cannot cost-effectively park itself on site to use parking at a municipal or private commercial parking facility.

2. ***Applicability.*** Shared parking is allowed by a special permit from the Community Development Board for any application in the BANCDC.
3. ***Requirements for Shared Parking.***
 - a. *Assigned Stalls.* Parking stalls that have been assigned to individual tenants or occupants shall not be eligible for shared parking.
 - b. *Access.* Parking facilities are accessible during the required hours of usage.
4. ***Distance.***
 - a. Accessory parking facilities for residential uses shall be located within seven-hundred and fifty (750) feet of the building which they are to serve, measured along the access route with a safe walking path.
 - b. Accessory parking facilities for nonresidential uses shall be located within one thousand (1,000) feet, measured along the access route with a safe walking path.
 - c. The access route is measured from the front door of the building to the pedestrian access point at the parking facility.
5. ***Joint Use Agreement.*** The right of joint use of shared accessory parking shall be demonstrated through a binding agreement that is tied to the land or similar written instrument establishing the joint use. The binding agreement may restrict future changes to the use of the property. All agreements are subject to review and approval of the Community Development Board to have accessory parking reduced pursuant to this section.
6. ***Shared Parking Agreements.***
 - a. Shared parking requires a written agreement among all owners of record.
 - b. An attested copy of the agreement between the owners of record shall be submitted to the Building Department and approved by the Director of Planning, Development, and Sustainability in a form deemed acceptable by the City Solicitors Office prior to and as a condition of the issuance of a building Permit.
 - c. Revocation of an existing parking agreement will only be accepted if the required accessory parking spaces are provided in accordance with the standards for the district where each property is located.
 - d. Failure to maintain a Shared Parking Agreement is a violation of the Special Permit and may result in a fine and the revocation of certificates of occupancy.

7. **Signage.** The manager of shared parking facilities shall provide signage identifying the permitted users.

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BOSTON AVENUE CORRIDOR: UPPER HILLSIDE

Boston Avenue Neighborhood
Corridor Zoning

Zoning Districts

- BA-1
 Mixed-use District
 Max Height:
 • 3 stories
 • +1 (IZ)= 4 stories
- BA-3
 Mixed-use District
 Max Height:
 • 5 stories
 • +2 (IZ)= 7 stories
 • IZ height is not permitted
 within 60 ft along North
 Street
 • 10 ft stepback for 6th+
 building story
- Corridor Boundary



8/19/2026

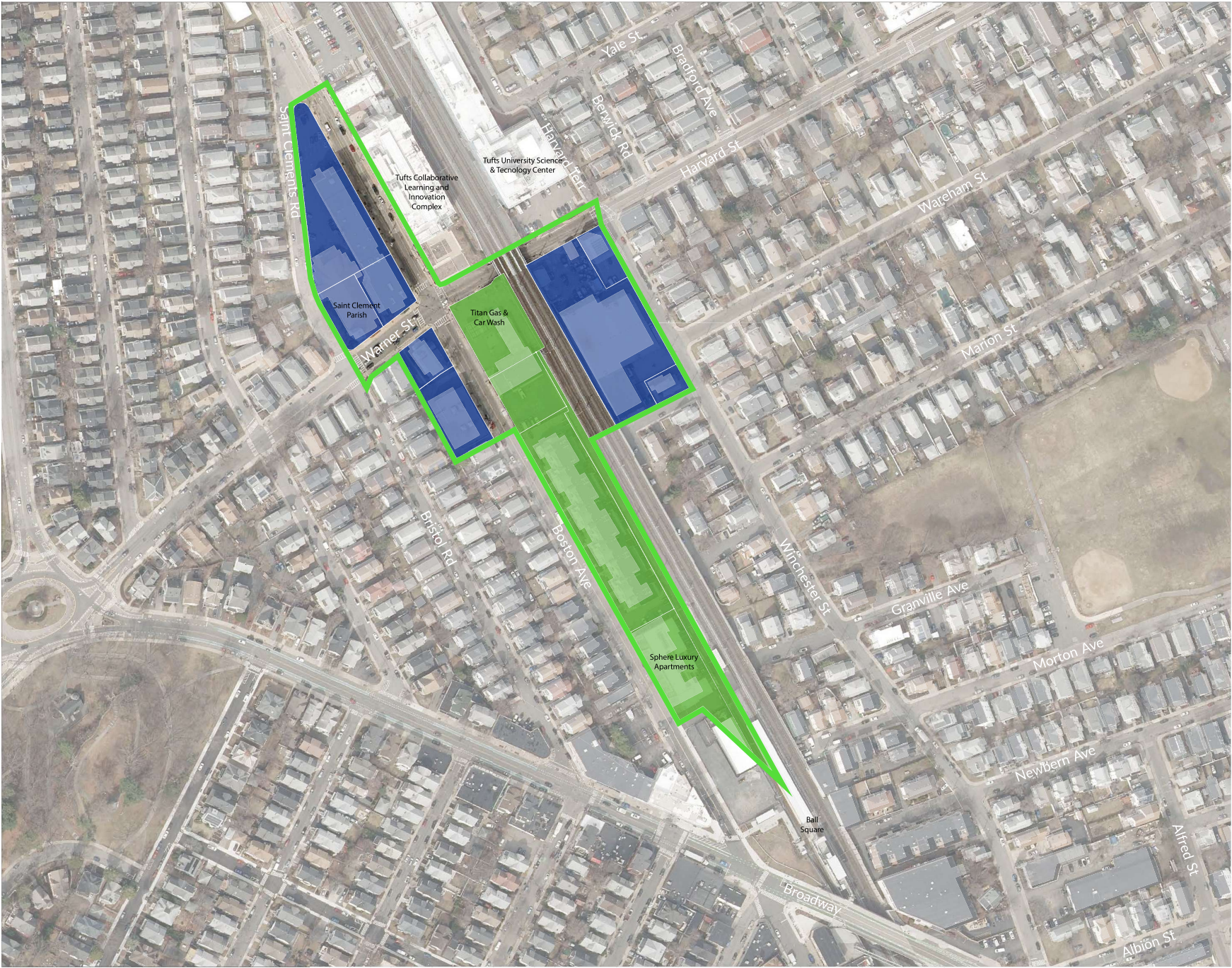


**BOSTON AVENUE
CORRIDOR:
SOUTH**

Boston Avenue Neighborhood
Corridor Zoning

Proposed Zoning Districts

- BA-2a
Mixed-use District
Max Height:
• 4 stories
• +3 (IZ)= 7 stories
- BA-2b
Mixed-use District
Max Height:
• 3 stories
• +1 (IZ)= 4 stories
• 20 ft setback from
Winchester Street
- Corridor Boundary



9/8/2026



August 4, 2026

26-142B

Council Response to Paper 26-142

Offered by President Bears

Motion to Approve: Councilor Tseng

Approved Unanimously

Whereas, the Medford City Council unanimously approved Resolution 26-043 on February 24, 2026 requesting a comprehensive litigation report from the City Administration regarding the significant increase in legal claims against the City of Medford since January 2020 and the financial cost of the City Administration's decisions regarding litigation strategy and employee relations to the city and its residents; and,

Whereas, the Medford City Council unanimously approved Resolution 26-077 on April 28, 2026 to file a Public Records Request pursuant to state law due to the City Administration's lack of response to the prior request; and,

Whereas, the Medford City Council took numerous votes and councilors provided clarity and guidance to the City Administration at dozens of public City Council meetings since February 2026 regarding the information requested in the above resolutions; and,

Whereas, the Medford City Council has only received partial and significantly delayed responses from the City Administration, including information never requested by the Council; and,

Whereas, the Medford City Council was forced to reduce the FY27 Law Department budget due to lack of information about past legal expenses and planned FY27 legal expenses in order to exercise basic oversight and transparency regarding the FY27 City Budget; and,

Whereas, the City Administration has made repeated statements that they are not capable of meeting these requests even after repeated clarifications by the Council; and,

Whereas, the Medford City Council received a document today, August 4, 2026, summarizing KP Law expenditures since January 2020 with a total sum of \$2.4 million; and,

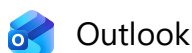
Whereas, the Chief of Staff informed the City Council by email that she is not able to attend tonight's meeting due to a prior commitment and requested that the Council refer any additional questions to the Mayor and Chief of Staff; now, therefore:

Be it Resolved by the Medford City Council that we request the following from the City Administration:

1. A written response to Resolution 26-043 with the status of each requested item in the Comprehensive Litigation Report and Quarterly Litigation Status Report, including an explanation of what efforts have been made to respond to each request and why the City Administration cannot provide the requested information, if necessary. This explanation may also include any efforts made to respond to the Public Records Request authorized by the Council in Resolution 26-077.
2. A written response to Resolution 26-043's request for an independent review of the City's litigation costs, practices, and risk management procedures.
3. A categorization of the August 4, 2026 list of KP Law expenditures into the following categories:
 - i. Collective bargaining negotiation expenses
 - ii. Employee litigation, arbitration, grievance, or other settlement-related expenses
 - iii. Legal review of ordinances or board and commission proceedings
 - iv. Non-employee claims and litigation (e.g. vehicle or sewer claims)
 - v. Provision of legal guidance to city staff regarding administrative actions
 - vi. Other legal work
4. A similar report and categorization of expenditures for any other outside legal services provided by firms other than KP Law since 2020.
5. A financial summary of all settlements or judgments against the city for claims over \$10,000 since 2020, including the amount paid by the city for each claim and the source of funds used to make payment.
6. A list and total estimated cost of all budgeted legal expenses for the FY27 city budget in department budgets other than the Law Department.
7. An update on the hiring of a City Solicitor and when the job will be posted.

Be it Further Resolved that the Medford City Council hopes that this further written clarification of its numerous and repeated requests for information since February 2026 will provide the City Administration with appropriate guidance to meet these requests and provide a transparent and full accounting of the city's legal expenses since 2020 to the residents of Medford.

Be it Further Resolved that this resolution be submitted to the City Administration immediately and the text be placed on the September 15, 2026 City Council Regular Meeting Agenda as Paper 26-142B along with any written responses received from the City Administration by September 10.



Outlook

Resolution 26-142

From Breanna Lungo-Koehn <blungokoehn@medford-ma.gov>

Date Mon 8/31/2026 10:32 AM

To City Council <council@medford-ma.gov>; City Council Members <ccmembers@medford-ma.gov>

Cc Nina Nazarian <nnazarian@medford-ma.gov>

President Bears & City Councilors,

I wanted to check in regarding Resolution 26-142.

First, I reached out to the Collins Center, which is the only organization I can think of that may do a litigation review. The Director responded that they have not done a litigation review before and he doesn't think it is something they have expertise in.

Please let me know of a couple companies or organizations who do a litigation review, and we will reach out for quotes as I have no problem doing one. I actually welcome it very much, because after our bond call last week it is even more clear what is going on. They are aware of the publicity this topic has produced and one of the first questions asked to us was if this was "all just noise." They asked that because from their review our liability is low.

It was upsetting that this issue has made its way to the bond rating agencies, which while remote, could jeopardize our rating as we all know how important a good rating is for the projects we are doing and more importantly for the new high school. I let S&P know that these same campaign tactics were used against me in 2021 and are now resurfacing as a personal attack against me to try to ruin my character and question my integrity, while someone positions for the first ever four-year Mayoral term.

The reality is that the same people saying there are too many lawsuits, legal fees and settlements are the very same people who are pushing others to sue (Mike, Mark, SS, etc).

We have provided you with all of the KP law bills and do not have the resources to categorize them, but please feel free to set up a committee to do so.

We will work to gather similar reports from all other outside legal firms since 2020 and send them as soon as we collect them all.

I believe we sent you all settlements and judgements over \$25k and we are now working on a list of all settlements from \$10k – \$25k per your request. We will send those to you asap.

We are going to send the Council all the line items in FY27 within the budget where we may pay for legal services with.

As soon as we receive the full FY27 legal funding we will post for a solicitor and work on the many other things we need continued legal support for such as the grant agreement with

MFN, etc.

Please do not hesitate to call me with any questions.

Sincerely,
Mayor Breanna

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): 2023 RECOUNT	\$12,093.53	\$12,060.00	\$33.53
Matter Description (First Line): 400 RIVERSIDE (R)	\$3,031.30	\$3,015.65	\$15.65
Matter Description (First Line): 40B	\$4,016.40	\$4,006.50	\$9.90
Matter Description (First Line): ALLSTATE/DILLON V. MEDFORD	\$956.00	\$956.00	\$0.00
Matter Description (First Line): ALLSTATE/SIMPSON V. MEDFORD	\$810.00	\$810.00	\$0.00
Matter Description (First Line): AMATO V. CHIEF OF POLICE	\$1,274.00	\$1,274.00	\$0.00
Matter Description (First Line): AMICO, ANGELO V. CITY OF MEDFORD	\$3,355.26	\$3,352.50	\$2.76
Matter Description (First Line): ANALETTO V. ZBA	\$22,173.21	\$22,027.50	\$145.71
Matter Description (First Line): ANTOINE V. CHIEF OF POLICE	\$2,197.10	\$2,133.00	\$64.10
Matter Description (First Line): ARBELLA V. MEDFORD	\$1,260.00	\$1,260.00	\$0.00
Matter Description (First Line): ARBELLA/DEALMEID A V. MEDFORD	\$4,509.00	\$4,509.00	\$0.00
Matter Description (First Line): ARPA	\$6,450.00	\$6,450.00	\$0.00
Matter Description (First Line): ATIYAT V. CITY OF MEDFORD	\$1,820.00	\$1,820.00	\$0.00
Matter Description (First Line): ATIYAT WAGE GARNISHMENT	\$831.00	\$831.00	\$0.00
Matter Description (First Line): AYALA V. MEDFORD	\$32,412.37	\$32,345.50	\$66.87
Matter Description (First Line): AYELE TRUSTEE PROCESS	\$837.00	\$837.00	\$0.00

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): BARTLETT V. CITY	\$8,005.57	\$7,969.00	\$36.57
Matter Description (First Line): BAYLISS V. CHIEF OF POLICE	\$2,216.10	\$2,160.00	\$56.10
Matter Description (First Line): BJ'S WHOLESALE CLUB V. CITY	\$8,519.00	\$8,479.00	\$40.00
Matter Description (First Line): BLACQUIER GRIEVANCE	\$3,797.00	\$3,797.00	\$0.00
Matter Description (First Line): BOARD OF HEALTH V. BARBARA H. SMITH	\$1,225.00	\$1,225.00	\$0.00
Matter Description (First Line): BUCKLEY V. CITY OF MEDFORD	\$12,895.63	\$12,101.00	\$794.63
Matter Description (First Line): BUILDING INSPECTOR INVESTIGATION	\$196.00	\$196.00	\$0.00
Matter Description (First Line): CABLE TV	\$7,635.00	\$7,635.00	\$0.00
Matter Description (First Line): CARDILLO V. MEDFORD	\$51,894.10	\$49,974.00	\$1,920.10
Matter Description (First Line): CASINO - SURROUNDING COMMUNITY AGREEMENT	\$2,455.00	\$2,455.00	\$0.00
Matter Description (First Line): CENTRELLA ET AL. V. BJS WHOLESALE AND MEDFORD CITY COUNCIL	\$3,249.71	\$3,175.00	\$74.71
Matter Description (First Line): CHERTOK ET AL. V. CITY	\$36,421.27	\$35,308.00	\$1,113.27
Matter Description (First Line): CLERICAL NEGOTIATIONS	\$10,286.00	\$10,266.00	\$20.00
Matter Description (First Line): COMBINED PROPERTIES, INC. 40B	\$7,086.00	\$7,048.00	\$38.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): COMMUNITY DEVELOPMENT BOARD (R)	\$25,033.71	\$24,735.07	\$298.64
Matter Description (First Line): CONBOY V. CITY OF MEDFORD	\$16,841.30	\$16,822.00	\$19.30
Matter Description (First Line): CONBOY V. MEDFORD/DUA	\$4,070.39	\$4,059.00	\$11.39
Matter Description (First Line): CONBOY/CIVIL SERVICE APPEAL	\$1,427.50	\$1,427.50	\$0.00
Matter Description (First Line): CONDELLI V. CHIEF OF POLICE	\$894.78	\$832.00	\$62.78
Matter Description (First Line): CONDUCT INVESTIGATION INTO PARKING DEPARTMENT	\$2,075.00	\$2,075.00	\$0.00
Matter Description (First Line): CONNORS, ET. AL V. CITY OF MEDFORD	\$5,118.50	\$5,118.50	\$0.00
Matter Description (First Line): CONSTANCE WHITE (USAA CASUALTY) V. CITY OF MEDFORD	\$1,809.81	\$1,775.00	\$34.81
Matter Description (First Line): CONTRACTS (R)	\$95,149.87	\$94,569.05	\$580.82
Matter Description (First Line): COTE V. MEDFORD - POLICE DEPT	\$2,586.73	\$2,276.00	\$310.73
Matter Description (First Line): COVID-19	\$17,984.42	\$17,977.50	\$6.92
Matter Description (First Line): CURRAN V. TRAFFIC COMMISSION	\$3,510.62	\$3,388.00	\$122.62
Matter Description (First Line): DASILVA V. CITY	\$18,725.81	\$18,669.00	\$56.81
Matter Description (First Line): DEOLIVEIRAMIRND V. MEDFORD - DPW/SNOW PLOW	\$3,554.00	\$3,554.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): DISPATCH UNION CONTRACT NEGOTIATIONS	\$8,284.24	\$8,276.00	\$8.24
Matter Description (First Line): DPW/ARBITRATION/ALL AFFECTED EMPLOYEES	\$2,253.00	\$2,253.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/D RUG TESTS	\$1,048.00	\$1,048.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/GOOD FRIDAY GRIEVANCE	\$336.00	\$336.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/MALERBA AND SMITH	\$81.00	\$81.00	\$0.00
Matter Description (First Line): DPW/ARBITRATION/S CARAMUZZO GRIEVANCE	\$392.00	\$392.00	\$0.00
Matter Description (First Line): DURBIN V. CITY OF MEDFORD	\$1,316.00	\$1,316.00	\$0.00
Matter Description (First Line): DURHAM V. MEDFORD	\$12,923.00	\$12,923.00	\$0.00
Matter Description (First Line): ENERGY/SOLAR CONTRACTING AND PROJECTS	\$28,459.01	\$28,440.00	\$19.01
Matter Description (First Line): ENGLEHUTT CONDOS V. CITY	\$1,414.00	\$1,414.00	\$0.00
Matter Description (First Line): EXAVIER V. CHIEF OF POLICE	\$4,971.29	\$4,913.00	\$58.29
Matter Description (First Line): FAGONE V. CITY	\$5,212.00	\$5,212.00	\$0.00
Matter Description (First Line): FARGO V. MEDFORD	\$8,052.58	\$7,942.00	\$110.58

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE DEPARTMENT INVESTIGATION	\$8,582.00	\$8,582.00	\$0.00
Matter Description (First Line): FIRE DEPARTMENT SICK USE REVIEW	\$10,231.00	\$10,231.00	\$0.00
Matter Description (First Line): FIRE/ ZIOBRO/ IOD/ ARBRITRATION	\$2,850.50	\$2,850.50	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN GRIEVANCE	\$3,009.05	\$2,996.00	\$13.05
Matter Description (First Line): FIRE/ARBITRATION/A HERN SICK TIME DISCIPLINE	\$4,158.00	\$4,158.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/A HERN TERMINATION	\$280.00	\$280.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D AVIS SICK NOTE	\$486.00	\$486.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/D UNN TERMINATION	\$1,111.00	\$1,111.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN DISCIPLINE	\$19,287.89	\$19,161.00	\$126.89
Matter Description (First Line): FIRE/ARBITRATION/H ALLORAN/DEMOTION	\$23,408.47	\$23,338.00	\$70.47
Matter Description (First Line): FIRE/ARBITRATION/M CELENY GRIEVANCE	\$644.00	\$644.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/O T AND DETAIL HIRING	\$13,419.18	\$13,412.00	\$7.18

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): FIRE/ARBITRATION/P ROMOTIONAL PAY STEP	\$3,699.00	\$3,699.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/SI CK LEAVE LETTERS	\$13,797.62	\$13,787.00	\$10.62
Matter Description (First Line): FIRE/ARBITRATION/SI CK MEMO	\$5,574.00	\$5,574.00	\$0.00
Matter Description (First Line): FIRE/ARBITRATION/W HITE DISCIPLINE	\$28,635.40	\$28,620.00	\$15.40
Matter Description (First Line): FIRE/CIVIL SERVICE/DUNN APPEAL	\$1,596.00	\$1,596.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/HALLORAN APPEAL	\$3,971.00	\$3,971.00	\$0.00
Matter Description (First Line): FIRE/CIVIL SERVICE/MCDONALD INVESTIGATION	\$4,536.00	\$4,536.00	\$0.00
Matter Description (First Line): FIRE/DLR/ULP/CIVIL SERVICE EXAMS	\$702.00	\$702.00	\$0.00
Matter Description (First Line): FIRE/ULP/AMBULANC E SERVICES	\$504.00	\$504.00	\$0.00
Matter Description (First Line): FIRE/ULP/OT DETAIL BYPASS	\$388.00	\$388.00	\$0.00
Matter Description (First Line): FIREFIGHTERS LOCAL 1032 V. CITY OF MEDFORD	\$20,749.03	\$20,682.00	\$67.03
Matter Description (First Line): FORCELLATI V. MEDFORD	\$6,652.19	\$6,542.00	\$110.19
Matter Description (First Line): G & R CONSTRUCTION, INC. V. CITY OF MEDFORD	\$56,124.90	\$55,220.00	\$904.90

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): GALE V. MEDFORD	\$6,275.61	\$6,225.00	\$50.61
Matter Description (First Line): GEICO A/S/O WOLDEMARIAM V. CITY	\$3,220.00	\$3,220.00	\$0.00
Matter Description (First Line): GEICO INSURANCE CO. AS SUBROGEE FOR NGUYEN V. CITY OF MEDFORD	\$3,343.00	\$3,343.00	\$0.00
Matter Description (First Line): GENERAL LABOR SERVICES (R)	\$190,124.62	\$162,503.44	\$27,621.18
Matter Description (First Line): GENERAL LEGAL SERVICES(R)	\$297,818.55	\$289,974.79	\$7,843.76
Matter Description (First Line): GIGANTE V. STATE HUMAN RESOURCES DIVISION	\$375.00	\$375.00	\$0.00
Matter Description (First Line): GILLIS V. CITY CLERK	\$3,411.08	\$3,383.00	\$28.08
Matter Description (First Line): GIORDANO V. MEDFORD	\$3,506.02	\$3,484.00	\$22.02
Matter Description (First Line): GUIRY V. CITY	\$4,712.00	\$4,712.00	\$0.00
Matter Description (First Line): HEALTH DEPARTMENT INVESTIGATION	\$8,186.14	\$8,175.00	\$11.14
Matter Description (First Line): HEALTH INSURANCE COVERAGE	\$4,325.00	\$4,325.00	\$0.00
Matter Description (First Line): HOWARD, ET AL. V. CITY	\$36,602.34	\$36,238.75	\$363.59
Matter Description (First Line): HUETHER V. BOARD OF HEALTH	\$1,385.25	\$1,378.00	\$7.25
Matter Description (First Line): INSPECTORS/MALERB A/ARBITRATION	\$644.00	\$644.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): JEAN MICHEL BYPASS APPEAL	\$1,600.00	\$1,600.00	\$0.00
Matter Description (First Line): JOHN DOE V. MEDFORD PUBLIC SCHOOLS	\$6,474.67	\$4,702.50	\$1,772.17
Matter Description (First Line): JUFFRE V. NATIONAL GRID	\$4,766.00	\$4,766.00	\$0.00
Matter Description (First Line): KODIS V. MEDFORD PS	\$3,835.00	\$3,835.00	\$0.00
Matter Description (First Line): LIBRARY NEGOTIATIONS	\$8,953.24	\$8,906.00	\$47.24
Matter Description (First Line): LINEHAN V. CITY OF MEDFORD	\$6,506.88	\$6,370.00	\$136.88
Matter Description (First Line): LOCAL 25 - CLERICAL	\$7,037.00	\$7,037.00	\$0.00
Matter Description (First Line): LOCAL 25 - DEPARTMENT HEADS	\$29,895.80	\$29,778.00	\$117.80
Matter Description (First Line): LOCAL 25 - DPW	\$72,261.14	\$70,268.50	\$1,992.64
Matter Description (First Line): LOCAL 25 - PARKING DEPARTMENT	\$16,273.69	\$16,217.00	\$56.69
Matter Description (First Line): LOCAL 25 - SUPERINTENDENTS AND INSPECTORS	\$14,540.00	\$14,499.00	\$41.00
Matter Description (First Line): LOCAL 25 (BUILDING INSPECTORS)/DLR/ULP/LOCATION-TRACKING TABLETS	\$1,670.00	\$1,670.00	\$0.00
Matter Description (First Line): LOCAL 25 (DPW)/DLR/ULP/DRUG TEST	\$8,558.00	\$8,558.00	\$0.00
Matter Description (First Line): LOCAL 25 DEPT. HEADS/ULP/FORMER IT DIRECTOR	\$18,009.73	\$18,002.00	\$7.73

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): LOCAL 25 DPW/AAA/FOREMAN SENIORITY GRIEVANCE 27507	\$7,050.00	\$7,050.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/AAA/MCKENNA TERMINATION	\$20,572.00	\$20,572.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/KERGER MEO III PROMOTION GRIEVANCE	\$9,190.00	\$9,190.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/NESTOR WARNINGS	\$338.00	\$338.00	\$0.00
Matter Description (First Line): LOCAL 25 DPW/ULP/SNOW PLOW INVESTIGATION	\$52.00	\$52.00	\$0.00
Matter Description (First Line): LOCAL 25/ARBITRATION/DINNER BREAK	\$2,492.00	\$2,492.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/PROBATIONARY PERIOD	\$783.00	\$783.00	\$0.00
Matter Description (First Line): LOCAL 25/ULP/TIME RECORDING POLICY	\$594.00	\$594.00	\$0.00
Matter Description (First Line): LODATO V. CITY OF MEDFORD	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): M. DISTASIO EXCAVATION CONTRACTORS BID PROTEST	\$1,148.00	\$1,148.00	\$0.00
Matter Description (First Line): MAIN STREET (RT. 38) MASSDOT PROJECT	\$4,088.00	\$4,088.00	\$0.00
Matter Description (First Line): MANGIASI APPEAL- MEDFORD POLICE	\$6,552.00	\$6,552.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MARIJUANA HOST COMMUNITY AGREEMENTS	\$3,484.50	\$3,484.50	\$0.00
Matter Description (First Line): MAYOR V. MIAA	\$1,282.50	\$1,282.50	\$0.00
Matter Description (First Line): MCCORMACK AVENUE SALE	\$1,809.00	\$1,809.00	\$0.00
Matter Description (First Line): MCDONALD V. CHIEF OF POLICE	\$305.00	\$305.00	\$0.00
Matter Description (First Line): MEDFORD FIREFIGHTERS LOCAL 1032	\$168,969.76	\$168,197.50	\$772.26
Matter Description (First Line): MEDFORD POLICE CHIEF V. TASLIMI	\$2,410.69	\$2,375.00	\$35.69
Matter Description (First Line): MEDFORD POLICE PATROLMEN'S ASSOCIATION	\$1,160.00	\$1,160.00	\$0.00
Matter Description (First Line): MEDFORD SCHOOL INVESTIGATION	\$19,432.32	\$19,253.00	\$179.32
Matter Description (First Line): MEDFORD SQUARE DEVELOPMENT	\$42,439.00	\$42,439.00	\$0.00
Matter Description (First Line): MEDFORD v. KATERINA BELL	\$2,604.00	\$2,604.00	\$0.00
Matter Description (First Line): MEDFORD v. TED MARTINEZ	\$4,424.00	\$4,424.00	\$0.00
Matter Description (First Line): MEDFORD ZBA AND DIV FELLSWAY, LLC (970 FELLSWAY, LLC)	\$30,862.25	\$28,800.00	\$2,062.25
Matter Description (First Line): MICHAEL DUPONT ET AL V. CITY OF MEDFORD, ET AL.	\$22,293.52	\$20,589.00	\$1,704.52

KP LAW, P.C.

Billed

ClientSort	TOTAL BILLED	BILLED	
	Fees/Disb.	Fees	Disb.
Matter Description (First Line): MILANO V. CITY	\$1,680.00	\$1,680.00	\$0.00
Matter Description (First Line): MPPA/ARBITRATION/ RICCIARDI/IOD	\$27.00	\$27.00	\$0.00
Matter Description (First Line): MYSTIC GREEN CONDO UNIT 21	\$292.50	\$292.50	\$0.00
Matter Description (First Line): MYSTIC, LLC COMPREHENSIVE PERMIT	\$54,052.18	\$51,907.50	\$2,144.68
Matter Description (First Line): NATIONAL GRID V. CITY OF MEDFORD, ET AL.	\$6,919.04	\$6,899.00	\$20.04
Matter Description (First Line): NEW YORK CAPITAL INVESTMENT V. MEDFORD COMMUNITY DEVELOPMENT BOARD	\$49,935.39	\$47,082.00	\$2,853.39
Matter Description (First Line): OPEN MEETING LAW (R)	\$7,543.20	\$7,508.19	\$35.01
Matter Description (First Line): PARKING DEPARTMENT INVESTIGATION	\$6,864.00	\$6,864.00	\$0.00
Matter Description (First Line): PARKWAY PLAZA CONDOMINIUM V. TARANTI ET AL	\$130.00	\$130.00	\$0.00
Matter Description (First Line): PAYROLL	\$24,832.67	\$24,773.00	\$59.67
Matter Description (First Line): PEC NEGOTIATIONS	\$7,943.02	\$7,934.50	\$8.52
Matter Description (First Line): PEC/ARBITRATION/OP T-OUT PAYMENT	\$24,730.22	\$24,700.00	\$30.22
Matter Description (First Line): PIERRE V. MEDFORD - POLICE DEPT	\$1,450.00	\$1,450.00	\$0.00

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): PLYMOUTH ROCK A/S/O MIKE'S LANDSCAPING V. CITY	\$3,236.00	\$3,236.00	\$0.00
Matter Description (First Line): POLICE PATROL NEGOTIATIONS	\$54,848.20	\$54,713.00	\$135.20
Matter Description (First Line): POLICE STATION PROJECT	\$1,030.00	\$1,030.00	\$0.00
Matter Description (First Line): PRONJA V. MEDFORD - DPW	\$1,042.00	\$1,042.00	\$0.00
Matter Description (First Line): PUBLIC RECORDS (R)	\$19,025.56	\$18,908.94	\$116.62
Matter Description (First Line): PUOPOLO V. CITY	\$1,738.00	\$1,738.00	\$0.00
Matter Description (First Line): RANDAZZO V. CHIEF OF POLICE	\$2,884.00	\$2,884.00	\$0.00
Matter Description (First Line): REAL ESTATE (R)	\$14,914.82	\$14,412.63	\$502.19
Matter Description (First Line): REFAH V. ZBA	\$33,345.52	\$33,182.00	\$163.52
Matter Description (First Line): SARRO V. CITY	\$3,628.00	\$3,628.00	\$0.00
Matter Description (First Line): SEELEY V. POLICE CHIEF	\$4,747.50	\$4,747.50	\$0.00
Matter Description (First Line): SHAIKH V. CITY	\$4,228.87	\$4,200.00	\$28.87
Matter Description (First Line): SMALL CELL WIRELESS	\$17,496.67	\$17,460.00	\$36.67
Matter Description (First Line): SWEENEY V. CITY	\$7,098.00	\$7,098.00	\$0.00
Matter Description (First Line): TASSINARI V. CITY	\$16,823.65	\$16,713.00	\$110.65
Matter Description (First Line): TEAMSTERS DEPARTMENT HEAD CERT.	\$3,546.50	\$3,530.00	\$16.50

KP LAW, P.C.

Billed

TOTAL BILLED		BILLED	
ClientSort	Fees/Disb.	Fees	Disb.
Matter Description (First Line): TEAMSTERS LOCAL 25 V. CITY OF MEDFORD (CONSOLIDATED CASES)	\$83,591.47	\$82,822.50	\$768.97
Matter Description (First Line): THEORY WELLNESS HCA	\$7,245.00	\$7,245.00	\$0.00
Matter Description (First Line): USAA V. CITY	\$1,456.00	\$1,456.00	\$0.00
Matter Description (First Line): VERMONT MUTUAL V. CITY	\$1,728.72	\$1,709.00	\$19.72
Matter Description (First Line): WEBBER V. MEDFORD - DPW/TREE ISSUE	\$400.00	\$400.00	\$0.00
Matter Description (First Line): WILLIAM F. O'BRIEN V. CITY OF MEDFORD	\$3,753.92	\$3,724.00	\$29.92
Matter Description (First Line): WOLK V. RISE TOGETHER, LLC (ZBA)	\$16,938.00	\$16,938.00	\$0.00
Matter Description (First Line): ZONING BOARD OF APPEALS (R)	\$20,934.85	\$20,844.74	\$90.11
Medford	\$2,394,234.11	\$2,334,731.25	\$59,502.86
Grand Totals:	\$2,394,234.11	\$2,334,731.25	\$59,502.86



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Isaac Bears, Council President

AGENDA ITEM

26-155 - Resolution to Appoint Councilor to Police Chief Hiring Committee

FULL TEXT AND DESCRIPTION

Be it Resolved by the Medford City Council that we appoint a member of the Council to serve on the interview panel for the Police Chief, as requested by the Mayor.

Be it Further Resolved that we request that the City Administration and its consultants meet publicly with the City Council in Committee of the Whole to outline the hiring process for the Police Chief and discuss what priorities will be considered in selecting the best candidate.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Matt Leming, City Councilor, Isaac
Bears, Council President, Justin
Tseng, City Councilor

AGENDA ITEM

26-156 - Resolution Calling for the Immediate Release of Medford Resident Vijay D'Souza from ICE Detention in Atlanta

FULL TEXT AND DESCRIPTION

WHEREAS Vijay D'Souza, a Medford resident and longtime member of the First Baptist Church of Medford, was detained by ICE on a return flight to Boston in the Atlanta Airport on August 29th, 2026;

WHEREAS Mr. D'Souza had been actively working with an attorney on a green card application at the time of his detention;

WHEREAS No information about the reasons for this detention were given to his wife, who has been working with an attorney on his release;

WHEREAS This detention has caused a great deal of distress to Mr. D'Souza's family, who continues to fight for his release; the First Baptist Church of Medford, who spearheaded a letter-writing campaign on his behalf; and the Medford community in general, who has been greatly distressed by the latest of many unlawful abductions by ICE in and around our community;

BE IT RESOLVED that the Medford City Council offer the highest possible endorsement for the release of Mr. D'Souza and allow him to continue with his green card process;

BE IT FURTHER RESOLVED that we condemn these acts and recognize the continued harm and fear that they inflict on our city and country.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-159 - Resolution Clarifying the Status and Application of the Proposed "Building Height" Definition Change

FULL TEXT AND DESCRIPTION

WHEREAS, the City Council has learned that a change to the definition of "Building Height" (Section 94-12.0) was discussed as part of the Medford Square rezoning process, and residents scheduled for Zoning Board of Appeals variance hearings were reportedly told that the height definition had already changed.

NOW THEREFORE BE IT RESOLVED, that the Medford City Council requests the Administration, through the Office of Planning, Development & Sustainability, and the Law Department, to answer the following on the record at the next regular meeting: Confirm adoption status. State plainly whether any change to the "Building Height" definition in Section 94-12.0 has been formally adopted by City Council vote under M.G.L. c. 40A §5, or whether it remains a proposed/draft amendment pending the required public hearing and two-thirds vote.

Disclose any pre-adoption application. Identify any instance in which the proposed height definition — or any interpretation, methodology, or guidance different from the current, legally operative definition — was communicated to a resident, applicant, or their representative as a basis affecting a pending or scheduled Zoning Board of Appeals variance hearing, prior to formal Council adoption.

BE IT FURTHER RESOLVED, that the City Council directs the acting City legal representation to review whether any application of an unadopted height definition to a pending permit, variance, or enforcement matter occurred, and to advise the Council in writing as to the legal validity of any such application and any corrective action required; and

BE IT FURTHER RESOLVED, that this matter be placed on the record to make clear that any change to the definition of "Building Height" in the Medford Zoning Ordinance is a legislative act requiring a vote of this City Council, and has not been enacted by administrative action, staff memorandum, or discussion at a joint session absent a completed Council vote.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-159 - Resolution to Draft Ordinance Concerning Acceptance of M.G.L. Chapter 40U and Establishment of a Municipal Fine Enforcement and Tax Roll Collection Process

FULL TEXT AND DESCRIPTION

Be it Resolved: Draft Ordinance concerning the acceptance of Massachusetts General Laws (M.G.L.) Chapter 40U and the establishment of a municipal fine enforcement and tax roll collection process.

Be it further resolved that the City Council hold a Committee of the Whole or Committee on Public Health and Community Safety meeting.

Be it further resolved we include a representative from the Treasurer, Assessor, Building, and Legal Department to be present at this meeting.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-160 - Resolution to Discuss Private Ways: Clarifying City Authority, Responsibilities, and Notice to Residents

FULL TEXT AND DESCRIPTION

Be it RESOLVED: the City Council discuss Private Ways: Clarifying City Authority, Responsibilities, and Notice to Residents.

Be it further Resolved the Council request a Committee of the Whole or Sub Committee meeting with representatives from DPW and City Administration to draft a communication plan to educate our residents on the responsibilities and processes for dealing with concerns for Private Ways.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Isaac Bears, Council President

AGENDA ITEM

26-161 - Resolution to Approve Council Declaration of Support for Resident or Attorney General Intervention in Chertok v. City of Medford to Ensure Effective Defense of City Ordinances

FULL TEXT AND DESCRIPTION

Whereas, the Medford City Council is the legislative body of the City of Medford and exercises significant authority concerning the approval and appropriation of municipal funds; and

Whereas, the City Council has concerns regarding the legal advice and representation it has received regarding certain litigation, including the ongoing CHERTOK, et al., vs. CITY OF MEDFORD, et al., and the extent to which the City Council's input has been reflected in the City's litigation posture; and

Whereas, the City Council is deeply concerned about the City's present litigation posture in the CHERTOK litigation, including the August 27, 2026 Stipulation requesting entry of permanent injunctive relief against enforcement of an ordinance duly enacted by the City Council; and

Whereas, the City Council believes that the issues presented in the CHERTOK litigation implicate not only Medford's municipal authority and autonomy, but potentially those of municipalities throughout the Commonwealth; and

Whereas, the Mayor and KP Law have neglected to adequately consult the City Council and keep it apprised on the CHERTOK litigation, and the City Council is concerned that the conduct of the Mayor and KP Law in the CHERTOK litigation exposes the city to an acutely increased risk of further litigation and liabilities; now, therefore:

Be it Resolved by the Medford City Council that we, as a body, adopt and execute the Declaration below concerning its position regarding the CHERTOK litigation and authorize its submission to the Court.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

- I. 2026.09.15 - Declaration of Support for Resident or Attorney General Intervention in Chertok v. City of Medford to Ensure Effective Defense of City Or

DECLARATION

We, the duly elected City Council of the City of Medford, Massachusetts, declare under penalty of perjury that the following facts are true and correct:

1. While the City Council has provided input and direction to appointed legal counsel on numerous occasions during the CHERTOK litigation, the City Council's input has not in general been reflected in the City's litigation positions, and the Council has continued to have significant concerns regarding the City's posture in this litigation.
2. As of September 10, 2026, the City Council has yet to be officially notified of or consulted regarding the filing of a so-called stipulation in the litigation on August 27, 2026, which appears to request the Courts enter final judgment against the City and enjoin it from enforcing a duly enacted ordinance, neither shown or claimed by the City to be unlawful.
3. In April, Plaintiffs in the CHERTOK case moved for preliminary injunction against the City enforcing or otherwise implementing the ordinance in dispute in the case.
4. The response to the Plaintiffs' motion for preliminary injunction, filed by the appointed legal counsel of the City and against the wishes of the City Council, assented to the injunction against enforcing ordinances duly enacted by the City Council and not shown to be unlawful.
5. The City's response further stated to the Court, in public filing, that the City had intentionally and knowingly raised funds prior to any litigation or notice of litigation in direct violation of the ordinance now in dispute.
6. The City Council believes the stipulation and assenting response to Plaintiffs' motion for preliminary injunction in the CHERTOK litigation reflect the divergence between the City Council's position and the legal position presently being taken on behalf of the City, which in the City Council's view potentially exposes the City to additional and unnecessary risk of litigation and further liabilities.
7. The filed stipulation raises financial concerns as its sole rationale for requesting that the Court force the City into a position in which it would be in violation of its own duly enacted ordinance in the raising of funds and thus exposed to a substantial increased risk of litigation.
8. In particular, the filed stipulation alleges that the City has to date spent \$35,000 dollars in the defense of the CHERTOK litigation.
9. In April, the City Council publicly held a Special Meeting, at the request of the Mayor, in which it voted by overwhelming majority to request that the Mayor allocate no less than \$75,000 to the defense in the CHERTOK litigation.
10. The City Council, as the legislative body of the City of Medford and under the Medford city charter, exercises significant authority concerning the approval and appropriation of municipal funds.
11. Before the August 27 Stipulation was filed, neither the City's appointed counsel nor the Mayor presented the City Council with an accounting of litigation expenses or requested that the City Council consider whether additional funds should be appropriated for the continued defense in the CHERTOK litigation.

12. Had the City Council been consulted regarding the financial concerns identified in the Stipulation, the City Council would have expressed its view that the approximately \$35,000 in costs identified there did not justify abandoning the defense in the CHERTOK litigation.
13. The City Council remains willing to consider the appropriation of additional funds reasonably necessary to continue defending in the CHERTOK litigation.
14. The City Council supports intervention by the Proposed Intervenors to permit a defense in the CHERTOK litigation to continue and would likewise support participation by the Massachusetts Attorney General in defending the case.

Signed:

Isaac B. Zac Bears, Council President

Emily K. Lazzaro, Council Vice President

Anna Callahan, City Councilor

Matt Leming, City Councilor

Liz Mullane, City Councilor

George A. Scarpelli, City Councilor

Justin Tseng, City Councilor

Dated: September 15, 2026



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

July 30, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following supplemental appropriation for Fiscal Year 2027, to restore the Law Department budget, which was originally proposed in a June 4, 2026 submission to the City Council.

	Mayor Proposed 6/4/26	City Council Cut on 6/23/26
Salaries	\$230,866.60	\$182,576.33
Ordinary	\$298,700.00	\$242,500.00
Total	\$529,566.60	\$425,076.33

And to meet this appropriation, the sum of Four Hundred Twenty-Five Thousand Seventy-Six Dollars and Thirty-Three Cents (\$425,076.33) be raised and appropriated from the Fiscal Year 2026 tax levy.

Over the past several weeks, we have made a thoughtful effort to engage with the Council on this appropriation as well as the provisions of legal documents responsive to your records requests. On May 13th, we responded to the Council's public records request, noting that Item (a) alone, of the nine requested items, would take an estimated 395 hours to review just email records.

On June 16th, we supplied the Council with 130 pages of City-side settlements and School-side settlements between 2020 and the Council's request.

On June 23rd, we provided the spending detail in the Fire Department Professional Services line as well as an outline of other legal expenditures incurred by the City in Fiscal Year 2026 budget. You may recall, I wrote to the full Council on June 3rd offering to discuss the most effective process for providing those materials. My Chief of Staff also requested at both the June 9th and June 23rd Council meetings that the Council designate a member to work with our office on this matter. We unfortunately have yet to receive a response.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

Most recently, on July 23rd, we supplied an updated breakdown of Medford's FY26 budget legal spending compared to other communities and on the same date, I emailed the Council President asking how we can reach an understanding so that my office could begin working a grant agreement to help fund Medford Family Network, begin the recruitment process for a new arts liaison position, and other budget priorities. I have not heard back on this request as of yet.

My administration has consistently sought to engage with the Council in a collaborative and transparent manner, and we remain committed to doing so. However, our repeated requests for coordination and communication with the Council have thus far gone unanswered. It is important that we receive direction and feedback from the Council collectively, or at least from a majority of its members, so that we can be confident we are proceeding in accordance with the Council's expectations and are not expending City staff time and resources pursuing work that may ultimately prove unnecessary or incomplete.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-Koehn
Mayor

26-142 - Supplemental Appropriation for the Fiscal Year 2027



July 30, 2026

Via Electronic Delivery
To the Honorable President and
Members of the Medford City Council
Medford City Hall
85 George P. Hassett Drive
Medford, MA 02155

Re: Supplemental Appropriation for the Fiscal Year 2027

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approves the following supplemental appropriation for Fiscal Year 2027, to restore the Law Department budget, which was originally proposed in a June 4, 2026 submission to the City Council.

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My administration has consistently sought to engage with the Council in a collaborative and transparent manner, and we remain committed to doing so. However, our repeated requests for coordination and communication with the Council have thus far gone unanswered. It is important that we receive direction and feedback from the Council collectively, or at least from a majority of its members, so that we can be confident we are proceeding in accordance with the Council's expectations and are not expending City staff time and resources pursuing work that may ultimately prove unnecessary or incomplete.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-KoeHN
Mayor

Councilor Tseng motioned to Amend the Appropriation paper to cut 382,586.70 from the Appropriation and approve 42,507.63 one-month funding (seconded by Councilor Scarpelli) – Approved on a Roll call vote of Seven in favor, Zero opposed

26-142B - Council Response to Paper 26-142

Offered by President Bears
Motion to Approve: Councilor Tseng
Approved Unanimously

Whereas, the Medford City Council unanimously approved Resolution 26-043 on February 24, 2026 requesting a comprehensive litigation report from the City Administration regarding the significant increase in legal claims against the City of Medford since January



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

AGENDA ITEM

26-146 - Board and Commission Appointments - September 15, 2026

FULL TEXT AND DESCRIPTION

Affordable Housing Trust

- Meghan Kelly
- 2 year term, expiring 07/01/2028

Civic Auditorium + Convention Center

- Perry Band
- 4 year term, expiring 08/01/2030

Council on Aging

- Dina Caloggero
- 2 year term, expiring 01/01/2028

Board of Health

- Jennie Vital
- 3 year term, expiring 10/08/2029
- \$900 stipend

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

1. Meghan Kelly - Affordable Housing Trust
2. Perry Band - Civic Auditorium & Convention Commission
3. Dina Caloggero - Council on Aging
4. Jennie Vital - Board of Health



Board & Commission Recommendation

Office of Mayor Breanna Lungo-Koehn

Submission date: 08/18/26 Date of appointment if not rejected: 09/17/26

Candidate for: Affordable Housing Trust

Application Type: New

Name: Meghan Kelly

Relevant Training? *I currently work as a Grants Administrator for the City of Somerville. I have three years of experience in municipal finance, and c. 5+ years of grant management experience. I worked for a small start-up based in Medford for many years. I am a proud queer trans person. My areas of expertise are finance, budgeting, and compliance. CV available upon request.*

Interests / Hobbies: Walking my dog, reading, watercolor painting.

Have you ever served on a board or commission? No

If so, which one(s)?



Board & Commission Recommendation

Office of Mayor Breanna Lungo-Koehn

Submission date: 08/10/26 Date of appointment if not rejected: 09/09/26

Candidate for: Civic Auditorium + Convention Center

Application Type: New

Name: Perry Band

Relevant Training? *Background in psychology, design, healthcare, high-tech software, and cyber security.*
Experience with large event planning, interviews/focus groups, communications/PR, research studies.

Interests / Hobbies: Gardening, hiking, kayaking, reading, dog walking.

Have you ever served on a board or commission? No

If so, which one(s)?

PERRY L. BAND

Pragmatic UX leader dedicated to learning about and advocating for users, building connections and knowledge-sharing, and supporting data-informed product strategy.

- ★ 10+ years experience in complex domains, including cybersecurity and healthcare
 - ★ Track record of growing UXR teams and establishing UXR as a critical practice.
 - ★ Skilled at partnering with Design, Product, and Eng to build org-wide user-centricity.
-

Experience

VMware | Carbon Black

July 2018 - Present

Senior Manager, User Experience Research

February 2022 - Present

- Lead a team of user researchers to support 8+ enterprise SaaS B2B cybersecurity products, including three new product launches.
- Coach UXR team members to identify, scope, plan, and execute user research, as well as distill complex concepts into understandable, actionable findings.
- Advocate for our specialized user base of cybersecurity practitioners in strategic discussions regarding cross-product strategy and vision.
- Lead the implementation of a behavioral analytics tool and process to provide insight into usage metrics across R&D.
- Promote user-centricity across R&D by creating resources for employees to gain user exposure including open research sessions, self-paced training/tutorials, and workshops.

Manager, User Experience Research

August 2019 - February 2022

- “Manager/Do-er” role growing the UXR team while also leading high-priority research.
- Developed inaugural UX KPIs, including heuristic evaluations and usage metrics.
- Launched the Design Partner Advisory Council, a quarterly meeting of product users to discuss topics of interest and provide product feedback.
- Operationalized “self-service” research repository enabling all of R&D to find prior research.
- Developed data-driven User Personas representing 9 roles across Security, IT, and Development based on analysis of user interviews.

Senior User Researcher, Lead

July 2018 - July 2019

- Led user research at all stages of the development lifecycle to inform critical decisions for complex projects including: new product SKU integrations, role-based access controls, and sensor upgrades.
- Delivered findings using compelling methods such as storytelling and research artifacts to illustrate abstract security concepts.
- Grew Design Partners program membership by over 400% to ease recruitment for research studies.

PERRY L. BAND

- Mentored and educated R&D employees on UX best practices and user-centricity.

WEVO

April 2017 - July 2018

Insight and Analytics Manager

- Designed and executed user research through WEVO's proprietary platform delivering actionable insights that boosted clients' web conversion metrics, and brand recognition.
- Developed over 200 Qualtrics surveys, including screeners and custom questions to meet customer project goals.
- Conducted user research regarding the WEVO platform, synthesizing and translating feedback into recommendations for the product roadmap.

Massachusetts General Hospital

March 2014 - April 2017

Project Specialist, Healthcare Transformation Lab

March 2015 - April 2017

Project Coordinator, Healthcare Transformation Lab

March 2014 - March 2015

- Managed projects aimed at improving healthcare through the use of digital health tools.
- Lead project planning/design, identify project metrics, and manage implementation.
- Conducted user research including survey creation, focus groups, ethnographies, journey mapping and prototyping, and used results to persuade stakeholders and drive projects forward.

Verndale

Sept. 2013 - March 2014

Project and Traffic Coordinator

Relevant Skills

- | | |
|--|--------------------|
| • Qualitative and quantitative user research methods | • Qualtrics |
| • Focus groups / Customer advisory boards | • Dovetail |
| • Persona development | • Optimal Workshop |
| • Journey mapping | • Miro |
| • Workshop facilitation | • Figma |
| • SQL | • Pendo |
| | • MixPanel |
| | • Google Analytics |

Education

Clark University

M.P.A., Master of Public Administration

May 2011

Clark University

B.A., Psychology, magna cum laude

May 2010



Board & Commission Recommendation

Office of Mayor Breanna Lungo-Koehn

Submission date: 09/04/26 Date of appointment if not rejected: 10/04/26

Candidate for:	Council on Aging
Application Type:	New
Name:	Dina Caloggero
Relevant Training?	<i>Having lived in Medford my entire life, I have deep roots in this community and am proud to be over 60 years old. I currently serve on the Community Development Board and am applying to become a member of the Council on Aging, which provides tremendous opportunities and wonderful activities for Medford seniors. Both my mom and my dad have benefited from the Medford Senior Center, so I have seen its positive impact firsthand. I would love to become a member and give back to an organization that has done so much, and will continue to do so, for our senior residents.</i> <i>I also have experience in grant writing and submitting and reviewing RFP.</i>
Interests / Hobbies:	<i>Yoga, poetry, book club, and play guitar.</i>
Have you ever served on a board or commission?	Yes
If so, which one(s)?	<i>Past member the Parks Commission, and current member Community Development Board.</i>

RESUME FOR FEDERAL EMPLOYMENT

FOR: DINA .A. CALOGGERO

APPLICANT INFORMATION

ANNOUNCEMENT NUMBER: [REDACTED]
JOB TITLE IN ANNOUNCEMENT: **MEDICAL TECHNOLOGIST**
GRADE: GS-0644-12

NAME: LAST: Caloggero
FIRST: Dina
MIDDLE: A.

MAILING ADDRESS: [REDACTED]
CITY: Medford
STATE: Massachusetts
ZIP CODE: 02155

DAY TELEPHONE NUMBER: 6 [REDACTED] 1
EVENING TELEPHONE NUMBER: 7 [REDACTED]
EMAIL ADDRESS: [REDACTED]

SOCIAL SECURITY NUMBER: 000-00-0000

COUNTRY OF CITIZENSHIP: UNITED STATES OF AMERICA
SECURITY CLEARANCE:

EDUCATION

HIGH SCHOOL: **MEDFORD HIGH SCHOOL**
Medford, Massachusetts Zip 02155
DIPLOMA

COLLEGES AND UNIVERSITIES:

SUFFOLK UNIVERSITY
Boston, Massachusetts
DEGREE: Bachelor of Science, Medical Technology

SUFFOLK UNIVERSITY
Boston, Massachusetts
DEGREE: Master of Public Administration
MAJOR: Health Administration

KNOWLEDGE / SKILLS / ABILITIES

Knowledge of Clinical Laboratory Amendments (CLIA) of 1988:

As stated elsewhere in my resume, as Quality Assurance Manager, I established procedures and processes and designed and conducted Audits and Surveys to ensure compliance with CLIA.

Knowledge of current medical technology practices:

I have many years of hands-on experience working as a Medical Technologist; developed and implemented clinical procedures, prepared and analyzed clinical samples, monitored and controlled access to highly pathogenic organisms regulated by the CDC and implemented Biosafety, Security, Incident Response, Disaster Recovery Planning, Occupational Health and Medical Surveillance Procedures.

Applicant: CALOGGERO, Dina A.
Social Security Number: 000-00-0000
Job Announcement Number: [REDACTED]
Job Title: Medical Technologist
Grade: GS-0644-12
Page: 2 of 8

KNOWLEDGE / SKILLS / ABILITIES (Continued)

Ability to conduct various types of Federal Monitoring Surveys (FMS):

I have conducted a wide variety of Federal Monitoring Surveys to ensure compliance with CLIA, OSHA, FDA and HIPAA requirements; oversaw all Proficiency Testing (PT) activities.

Oral Communication:

Established schedules, cost commitments and regulatory requirements by communicating with staff and vendors; supervised and coordinate daily activities within main laboratory and three patient service centers; discussed test results and findings with physicians and other medical staff.

Written Communication:

Negotiate contracts and service agreements; develop project timelines and requirements; conduct audits and publish results; investigate problems and create and implement procedural changes; prepared and maintained policies and procedures for the proper functioning of laboratories and wrote cost/benefit analyses and commercial pricing agreements.

Skill in using computer systems or applications:

As Director of Infomatics, I am highly skilled in the use, design and acquisition of highly complex computer systems. I routinely use the following: Microsoft Word, Excel, Access, PowerPoint, Project, Visual Basic 6.0, C Programming, Rational Robot, Rational Requisite Pro and WinRunner.

WORK EXPERIENCE

PAID AND UNPAID WORK EXPERIENCE THAT RELATES TO THIS JOB I AM APPLYING FOR:

JOB TITLE:	DIRECTOR OF INFOMATICS
EMPLOYER'S NAME:	MASSACHUSETTS DEPARTMENT OF PUBLIC HEALTH BUREAU OF LABORATORY SCIENCES
EMPLOYER'S ADDRESS:	305 South Street, Boston, Massachusetts 02130
FROM: 12 / 25/ 2005	TO: Present
SUPERVISOR'S NAME:	Michael Pentella, PhD
SUPERVISOR'S TELEPHONE:	617-983-4362
HOURS PER WEEK:	[REDACTED]

MAY WE CONTACT YOUR SUPERVISOR: NO

DUTIES:

Management: Manage all aspects of application development, implementation, maintenance and support for the Science Laboratories Infrastructure (SLI) Bureau of Laboratories

Staffing: Responsible for the SLI Laboratory Bureau IT Staff.



Board & Commission Recommendation

Office of Mayor Breanna Lungo-Koehn

Submission date: 09/08/26 Date of appointment if not rejected: 10/08/26

Candidate for: Board of Health *

Application Type: Request for reappointment

Name: Jennie Vital

Relevant Training? *Over 10 years of experience working in health care administration. Currently board chair of a non-profit in Boston focused on feeding those who are food and/or housing insecure. Have volunteered as a mentor with youth in the city of Boston, through the YMCA Y-Achievers program. Participated in a Climate Change workgroup and designated a Climate Ambassador for the city of Somerville.*

Interests / Hobbies: *I have been a resident of Medford for 2 years and looking for ways to be more involved. I am interested in supporting efforts on accessing & affordable housing, youth empowerment, promoting health through engagement and education, and advocacy for our most vulnerable constituents of Medford.*

Have you ever served on a board or commission? No

If so, which one(s)?

EXECUTIVE PROFILE

- Medicaid and healthcare transformation executive with 15 years of experience leading strategy, operations, population health, health equity, and value-based care initiatives across health systems, accountable care organizations, managed care entities, physician networks, and community-based organizations.
 - Executive healthcare leader with expertise in Medicaid strategy and policy, government-sponsored programs, managed care contracting, provider network development, regulatory affairs, financial stewardship, care delivery transformation, strategic growth initiatives, board relations, and cross-functional leadership across complex healthcare organizations.
 - Recognized leader in Medicaid program design, payer-provider collaboration, and population health transformation, with a proven track record of translating state and federal policy into scalable operational models that improve quality, reduce disparities, enhance member experience, and drive financial sustainability.
 - Trusted advisor and relationship builder with extensive experience managing multimillion-dollar budgets, leading diverse teams, negotiating strategic partnerships, and collaborating with state Medicaid agencies, health plans, providers, community organizations, boards, and executive stakeholders to advance organizational priorities and improve outcomes for vulnerable populations.
-

PROFESSIONAL EXPERIENCE

Vital Innovative Action Consulting **Founder & CEO**

2024- Present

Provide executive advisory services to healthcare organizations, health plans, accountable care organizations, provider networks, and community-based organizations focused on Medicaid transformation, health equity, value-based care, care delivery redesign, and operational performance improvement.

Key accomplishments:

- Advise executive leadership teams in Massachusetts and California on Medicaid strategy, program expansion, managed care partnerships, and organizational transformation initiatives.
- Lead enterprise assessments focused on care management, care coordination, population health, health-related social needs, and Medicaid program implementation.
- Support organizations in developing scalable operational models, financial sustainability strategies, governance structures, and performance measurement frameworks.
- Advise community-based organizations on the development of Medicare-funded service models for aging populations, including assessment of reimbursable service opportunities, identification of operational and service delivery gaps, workforce planning, implementation strategy, and development of partnerships to support claims administration, billing, and long-term program sustainability.
- Facilitate collaboration among health plans, providers, community-based organizations, and government stakeholders to improve member outcomes, strengthen care coordination, and reduce health disparities.

Steward Health Care Network | Westwood, MA **Executive Director, Medicaid ACO Program & Strategy (National)**

2022- 2024

- Directed strategy and operations for a Medicaid ACO serving approximately 100,000 members across 142 primary care practices.
- Managed approximately \$100 million in annual Medicaid program funding, including oversight of a \$30 million provider investment strategy designed to improve quality performance, member outcomes, and total cost of care.

- Served as executive liaison to MassHealth, the Executive Office of Health and Human Services, and the Massachusetts Division of Insurance, influencing program implementation, regulatory compliance, and policy discussions.
- Led development of the organization's multi-year Medicaid growth and expansion strategy, including assessment of new market opportunities, health plan partnerships, and state contracting opportunities.
- Directed enterprise health equity initiatives, including NCQA Health Equity Accreditation efforts and implementation of a five-year strategic plan aimed at reducing disparities across priority populations.
- Presented program performance, financial results, strategic recommendations, and operational updates to executive leadership, governance committees, and advisory boards.

Boston Medical Center (BMC) | Boston, MA

2018- 2022

Interim Director, Boston Allied Partners, LTSS Community Partner Program (2021-2022)

- Appointed Interim Director to provide leadership and operational oversight for the Long-Term Services and Supports (LTSS) Community Partner Program, ensuring continuity of services for Medicaid members with complex medical, behavioral health, and social needs across the Greater Boston region.
- Directed a multidisciplinary team of care coordinators and administrative staff responsible for delivering community-based care coordination and home-based support services to children and adults ages 3–64.
- Managed strategic relationships with three contracted community partner organizations, strengthening collaboration, performance accountability, and service delivery to improve member outcomes and access to care.
- Oversaw a program budget of approximately \$1 million, ensuring financial performance, resource optimization, contract compliance, and achievement of revenue and operational goals.
- Led workforce development efforts, including recruitment, onboarding, training, performance management, and mentorship of new and existing staff to enhance team effectiveness and program performance.
- Implemented operational improvements and standardized processes to support quality care coordination, regulatory compliance, and consistent service delivery across partner organizations.
- Collaborated with executive leadership, managed care entities, community-based organizations, and provider partners to address operational challenges, improve care transitions, and strengthen integration across the care continuum.
- Provided leadership during a period of organizational transition, maintaining program stability while advancing strategic priorities focused on member engagement, care coordination, and population health outcomes.

Manager, Social Services, Boston Medical Center Health System (2020-2022)

- Directed implementation of a \$16 million Medicaid Flexible Services portfolio focused on housing and nutrition interventions across multiple accountable care organizations and community-based organizations.
- Led strategy, budgeting, implementation, reporting, and performance management activities associated with Massachusetts Medicaid waiver initiatives.
- Served as primary subject matter expert for MassHealth Flexible Services and social determinants of health programming across provider and community partner networks.

ACO Manager, Boston Accountable Care Organization (2018-2020)

- Led strategic implementation and performance management activities for the MassHealth Accountable Care Organization, serving as a key liaison between provider organizations, managed care entities, community partners, and state agencies to advance quality, cost, and population health goals.
- Directed provider engagement and network management efforts to strengthen collaboration across contracted practices, improve program performance, and support high-quality, coordinated care delivery for Medicaid members.

- Managed the development, submission, and ongoing oversight of Delivery System Reform Incentive Payment (DSRIP) participation plans, budgets, and progress reports, securing state approval of approximately \$60 million in funding across the 2019 and 2020 performance years.
- Provided operational and strategic oversight for the Community Partners (CP) Program, cultivating partnerships between 27 Community Partners and 19 provider organizations to improve care coordination and outcomes for complex Medicaid populations.
- Served as the primary relationship management lead and escalation point across MassHealth, managed care organizations, provider leadership, complex care management teams, and community-based organizations to address operational challenges and strengthen program performance.
- Led cross-functional initiatives with information technology and operational teams to redesign reporting processes, streamline workflows, and improve organizational efficiency through enhanced data and performance reporting capabilities.
- Developed and executed a provider engagement strategy, including a multi-site Community Partner roadshow, to strengthen collaboration, improve data-sharing practices, and advance integrated care delivery models across the ACO network.
- Created educational resources, performance assessments, and stakeholder engagement tools that improved provider understanding of Community Partner services and identified opportunities for operational improvement.
- Partnered with quality leadership to align Community Partner activities with ACO quality goals and value-based performance measures, fostering greater accountability and shared responsibility for member outcomes.
- Led governance activities for the Patient and Family Advisory Committee (PFAC), establishing the organization's first Consumer Representative role and strengthening member engagement in organizational decision-making and strategic planning.
- Managed a \$715,000 DSRIP Technical Assistance investment portfolio, supporting initiatives designed to improve provider capabilities, strengthen care delivery infrastructure, and ensure long-term sustainability beyond waiver funding.
- Collaborated with Health Law Advocates and community stakeholders to launch the Mental Health Advocacy for Kids program in Bristol County, expanding access to behavioral health advocacy services and supporting more than 30 children and families during the program's first year.

Steward Health Care Network | Dedham, MA

2017- 2018

Implementation Project Manager, Medicaid Accountable Care Organization

- Played a key leadership role in the design, implementation, and launch of Steward Health Care's Medicaid Primary Care ACO, supporting organizational readiness for a value-based care model serving more than 125,000 MassHealth members.
- Facilitated strategic planning sessions with executive leadership, clinical, operational, financial, and technology stakeholders to develop and execute implementation plans aligned with state requirements, organizational goals, and program timelines.
- Led cross-functional coordination efforts across multiple departments to ensure successful program implementation, resulting in a successful MassHealth Readiness Review and achievement of Health Policy Commission ACO Certification.
- Served as the primary liaison between Steward and MassHealth for implementation activities and contract compliance matters.
- Partnered with operational and clinical leaders to design workflows, policies, and governance structures that supported compliance, care coordination, population health management, and value-based care objectives.
- Managed vendor relationships and contract administration, including contract negotiations, amendments, change orders, budget tracking, and oversight of vendor performance against contractual obligations.
- Monitored implementation expenditures and vendor invoices, providing financial reporting and recommendations to executive leadership to support budget management and strategic decision-making.

Jennie Vital, MBA

- Provided leadership and direction to a team of project coordinators responsible for project planning, risk mitigation, issue resolution, stakeholder communications, and execution of key implementation milestones.
- Supported workforce onboarding and team development efforts, including training, resource development, and operational readiness activities to strengthen organizational capacity.
- Conducted policy and regulatory analysis related to Medicaid and behavioral health requirements, informing organizational implementation strategies and ensuring compliance with state and federal regulations.
- Collaborated with internal and external stakeholders to advance implementation activities, facilitate decision-making, and maintain momentum across complex, enterprise-wide initiatives.

EDUCATION

Harvard Medical School Cambridge, MA	(In Progress, 2026)
Certificate: AI in Health Care: From Strategies to Implementation	
Simmons College School of Management Boston, MA	2017
Master of Business Administration, HealthCare	
University of Massachusetts Boston Boston, MA	2012
Bachelors of Arts, Psychology	

PROFESSIONAL ASSOCIATIONS and COMMUNITY SERVICE

Board Participation: Medford Board of Health (2023- current), Friday Night Supper Program-Chair of the Board (2018-2023), Direct Federal Credit Union (2019-2021)

Professional Memberships: Women in Healthcare Management (2025), American College of Healthcare Executives (2026), New England Society for Healthcare Strategy (2026)



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 10, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: FY27 CPA Appropriation Request – TreesMedford Barry Park-College Ave Plantings

Dear President Bears and City Councilors:

On behalf of the Community Preservation Committee, I respectfully request and recommend that your Honorable Body approve the following FY27 recommendation of the Community Preservation Committee:

Requesting the appropriation of \$8,500.00 from the CPA Open Space Reserve to TreesMedford, to provide funds for the Barry Park-College Avenue Plantings project.

The project will be tracked in the Community Preservation Fund. The CPC recommendation letter is attached and incorporated. Community Preservation Act Manager Theresa Dupont will be in attendance to address the Council.

Thank you for your consideration.

Respectfully submitted,


Breanna Lungo-Koehn
Mayor

Enclosure

**85 George P. Hassett Drive, Medford, MA 02155
781-396-5500 * www.medfordma.org**



Funding Recommendation Decision

September 8, 2026

Applicant Name: TreesMedford

Applicant Address: 54 Canal Street, Medford MA 02155

Project: Barry Park – College Avenue Plantings

On September 8, 2026 the City of Medford Community Preservation Committee ("CPC") voted 7-0 to recommend approval to City Council that TreesMedford be awarded \$8,500.00 of Community Preservation Act funds for the Barry Park – College Avenue Tree Plantings project. In reaching their decision, the CPC found that the project meets the Community Preservation Plan's objective of supporting tree canopy in recreational areas.

Conditions of Approval:

1. TreesMedford shall obtain written approval of the planting plan from the City's Tree Warden or City designee, and will coordinate with the Office of Diversity, Equity, and Inclusion, and Department of Public Works.

Signed by:

F08445EDF6B4472...

Roberta Cameron, Chair
Community Preservation Committee

City of Medford FY27 Community Preservation Act

EXECUTIVE SUMMARY FOR CITY COUNCIL
SEPTEMBER 15, 2027

Barry Park - College Ave Grove



Dear City Council,

This executive summary provides an overview of a FY27 Community Preservation Act (“CPA”) funding recommendation made by the Community Preservation Committee (“CPC”) for the Medford City Council to consider.

This recommendation took into consideration public feedback received at community outreach events/surveys and priorities of City leadership, was informed by the City’s Comprehensive Plan and Climate Action and Adaptation Plan. This information is intended to provide additional detail of the projects and the community impact.

We thank you for your time and consideration.

Respectfully submitted,

Theresa Dupont
Community Preservation Act Manager

Project: Barry Park - College Ave Tree Grove

Funding Recommendation: \$8,500

Applicant: TreesMedford

CPA Category: Open Space/Recreation

[Link to application materials here](#) or by visiting medfordma.org/boards-commissions/community-preservation-committee and selecting ‘FY27 Applications Under Consideration’

Project Summary:

TreesMedford is seeking funds to plant an intentionally-designed grove of native trees and flowering shrubs at an underutilized portion of Barry Park, along College Avenue. The project will be implemented using volunteer labor; funds are being sought to purchase the plantings, prepare the site with soil amendments and appropriate fencing protection for the plants during their establishment.

Later phases of this project will see a formalized walking path, bench seating, and interpretive signage.

Objectives:

- Continue growing Medford's tree canopy, as identified as a priority in Medford's Climate Action and Adaptation Plan

Key Outcomes:

- Create a community amenity, while converting underutilized open space to viable, usable public area

CPC Funding Conditions:

1. TreesMedford shall obtain written approval of the planting plan from the City's Tree Warden or City designee, and will coordinate with the Office of Diversity, Equity, and Inclusion, and Department of Public Works.



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 10, 2026

Via Electronic Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Litigation Settlement

Dear President Bears and Members of the City Council:

I respectfully request and recommend that your Honorable Body approve the following settlement:

- Sentry Ford v. Medford - \$11,640.00

Attorney Thomas Lane will be in attendance to answer questions.

Thank you for your kind attention to this matter.

Sincerely,


Breanna Lungo-Koehn
Mayor